

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

Index # 2341/15  
Date of filing:

-----X  
MICHAEL GRAY,

Plaintiff designates Kings  
County as the place of trial

Plaintiff,

Basis of the venue is the Locus  
of Occurrence

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as  
yet unidentified,

**SUMMONS**

Plaintiff resides at  
193 Clinton Ave Apt. # 10D  
Brooklyn, New York 11205

Defendants.

County of Kings

**TO THE ABOVE NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

**Defendant's address:**

THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

**Plaintiff's attorneys:**

RUBENSTEIN & RYNECKI, ESQS.  
16 Court Street, Suite 1717  
Brooklyn, New York 11241  
(718)522-1020

THE NEW YORK CITY POLICE  
DEPARTMENT  
100 Church Street  
New York, New York 10007

POLICE OFFICER MICHAEL LANDI  
Tax ID# 950718  
c/o New York City Police Department- 88<sup>th</sup>  
Precinct  
298 Classon Avenue  
Brooklyn, New York 11205

Dated: Brooklyn, New York  
January 30, 2015

KINGS COUNTY CLERK  
FILED  
2015 FEB 24 PM 3:39

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as  
yet unidentified,Defendants.  
-----X

Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT  
AND BATTERY ON BEHALF OF MICHAEL GRAY**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on May 28, 2014, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H hearing of the plaintiff has not held. A date for said hearing is in the process of being scheduled.

6. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHAEL GRAY, was lawfully present at or about the intersection of Myrtle Avenue and Emerson Place, County of Kings, City and State of New York.

8. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHAEL GRAY, was assaulted and battered by defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, at the aforesaid premises.

9. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, MICHAEL GRAY, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

11. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and

was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT  
HIRING AND RETENTION ON BEHALF OF MICHAEL GRAY**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, MICHAEL GRAY.

16. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE  
ARREST ON BEHALF OF MICHAEL GRAY**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, MICHAEL GRAY.

20. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, MICHAEL GRAY, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE  
IMPRISONMENT ON BEHALF OF MICHAEL GRAY**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND

JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL  
AND NEGLIGENT INFLICTION OF EMOTIONAL  
DISTRESS ON BEHALF OF MICHAEL GRAY**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, MICHAEL GRAY.

30. That as a result of said intentional and negligent acts, the plaintiff, MICHAEL GRAY, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS  
PROSECUTION ON BEHALF OF MICHAEL GRAY**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

34. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

35. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

36. By reason of the foregoing, plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL  
RIGHTS VIOLATION ON BEHALF OF MICHAEL GRAY**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the plaintiff, MICHAEL GRAY, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

39. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, MICHAEL GRAY, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

40. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

41. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

42. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

43. That the defendants' actions were not privileged or immune.

44. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY

POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

45. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR  
PUNITIVE DAMAGES ON BEHALF OF MICHAEL GRAY**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

48. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

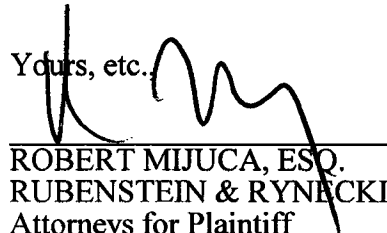
49. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**WHEREFORE**, plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action;

plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York  
January 30, 2015

Yours, etc.



ROBERT MIJUCA, ESQ.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorneys for Plaintiff  
MICHAEL GRAY  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718) 522-1020  
File No.: 14MG04-17

**INDIVIDUAL VERIFICATION**

STATE OF NEW YORK )

) SS:

COUNTY OF KINGS )

MICHAEL GRAY, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

  
MICHAEL GRAY

Sworn to before me this 19<sup>th</sup>  
day of February, 2015

  
NOTARY PUBLIC

Christopher V. Vito  
Commissioner of Deeds, City of New York  
CDD number: 4-7212  
New York County  
Expires: April 1, 2016

NOTICE OF ENTRY

PLEASE take notice that the within is a (certified) true copy of a duly entered in the office of the clerk of the within named court on

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

Index No.

Year

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,  
POLICE OFFICER MICHAEL LANDI and JOHN DOES-Police Officers as yet  
unidentified,

Defendants.

To

Attorney(s) for

SUMMONS AND COMPLAINT

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on

at

M.

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

Signature (Rule 130-1.1-a)

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Plaintiff

Office and Post Office Address, Telephone

16 COURT ST.

BROOKLYN, N.Y. 11241

(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated

To

Attorney(s) for

Attorney(s) for

RUBENSTEIN & RYNECKI ESQS.

**Affidavit of Service**

Supreme Court, KINGS County, New York

CASE NO.: 2341/15

Plaintiff / Petitioner: Michael Gray

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Michael

Landi and John and Jane Does- Police Officers as yet unidentified

Network Provided

Time - 01:28 PM Date - March 02, 2015

GPS

40.713722 -74.010223

State of New York, County of Kings

I Joseph Israel being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on March 02, 2015 at 01:28 PM at 100 Church Street, New York, NY 10007, deponent served the within Summons and Complaint on The New York City Police Department here in known as the Recipient. Said service was effected in the

following manner;

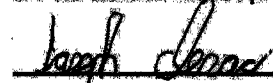
**INDIVIDUAL**

By delivering thereat a true copy of each to Th New York City Police Department personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: Individuals name was Betty Mazyck, Black, Female, 5' 7", 170 - 180 lbs, Gray hair, Dark eyes, glasses, 55 - 60 years

**Mailing**On March 3, 2015 service was completed by mailing a true copy of above document (s) to the above address in a First (1<sup>st</sup>) Class postpaid properly addressed envelope marked "Personal and Confidential" in an official depository under the exclusive care and custody of the United States Post office in the State of New York.**Military Service:**

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York, and was informed that said person is not



Joseph Israel

License No. 2012136-DCA

**Notary Section**Subscribed and affirmed, or sworn to before me this 3rd day of March, 2015

Notary Public:

Commission Expires:

Prepared by:

Phone: Fax:

MAGDA MARIN-COLON  
Notary Public, State of New York  
No. 01MA6158891  
Qualified in Richmond County  
Commission Expires 1-16-2019FILED  
2015 MAR -3 AM 7:37  
KINGS COUNTY CLERK

**Affidavit of Service**

Supreme Court, KINGS County, New York

CASE NO.: 2341/15

Plaintiff / Petitioner: Michael Gray

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Michael

Landi and John and Jane Does- Police Officers as yet unidentified

Network Provided

Time - 01:27 PM Date - March 02, 2015

GPS

40.713631 -74.010048

State of New York: County of Kings

I Joseph Ieraci being duly sworn deposes and says that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on March 02, 2015 at 01:27 PM at 100 Church Street, New York, NY 10007, deponent served the within Summons and Complaint on The City Of New York here in known as the Recipient. Said service was effected in the

following manner;

**INDIVIDUAL**

By delivering thereof a true copy of each to The City Of New York personally, deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served by the best of the deponent's ability at the time and circumstances of service as follows: Individuals name was Betty Maxyck, Black, Female, 5'7", 170 - 180 lbs, Gray hair, Dark eyes, glasses, SS - 60 years

**Mailing**

On March 3, 2015 service was completed by mailing a true copy of above document (s) to the above address in a First (1<sup>st</sup>) Class postpaid properly addressed envelope marked "Personal and Confidential" in an official depository under the exclusive care and custody of the United States Post office in the State of New York

**Military Service:**

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York, and was informed that said person is not

Joseph Ieraci

Joseph Ieraci

License No. 2012136-DCA

**Notary Section**

Subscribed and affirmed, or sworn to before me this 3rd day of March, 20 15

Notary Public:

Commission Expires:

Prepared by:

Phone: Fax:

MAGDA MARIN-COLON  
Notary Public, State of New York  
No. 01MA6158891  
Qualified in Richmond County  
Commission Expires 1-16-2019

FILED  
2015 MAR - 3 AM 7:37  
KINGS COUNTY CLERK

NYSCEF NO. 15-2341  
SUPREME COURT OF THE STATE OF NEW YORK

RECEIVED NYSCEF: 07/30/2020

Index Number: 15-2341

Date Filed: 02-24-2015

Court/Return Date:

## COUNTY OF KINGS

ATTORNEY(S) RUBENSTEIN & RYNECKI, ESQS  
16 COURT ST., STE. 1717 BROOKLYN, NY 11241 |

PH: (718) 522-1020

Michael Gray

VS

Plaintiff

The City of New York, The New York City Police Department, Police Officer Michael Landi and John and Jane Does-Police Officers  
as yet unidentified

Defendant

STATE OF NEW YORK, COUNTY OF NASSAU, SS.:

## AFFIDAVIT OF SERVICE

Assmat Abdelrahman, being sworn says:

Deponent is not a party herein is over the age of 18 years and resides in the State of New York.

On March 12, 2015, at 2:55 PM at 298 Classon Ave., Brooklyn, NY 11205, Deponent served the within Summons and Complaint

The index number and the filing date of the action were endorsed upon the face of the papers so served herein.

On: Police Officer Michael Landi, Tax ID# 950718 c/o NYCPD 88th Pct., Defendant therein named, ( hereinafter referred to as "subject").☐ #1 INDIVIDUAL

By delivering a true copy of each to said subject personally; Deponent knew the person so served to be the person described in as said subject therein.

☐ #2 ENTITY/CORPORATION/LLC/LLP

By delivering to and leaving with said individual to be who specifically stated he/she was authorized to accept service on behalf of the Corporation/Government Agency/Entity.

☒ #3 SUITABLE AGE PERSONBy delivering thereat a true copy of each to Officer Williams () a person of suitable age and discretion. Said premises is subject's:[X] actual place of business / employment ☐ dwelling house (usual place of abode) within the state.☐ #4 AFFIXING TO DOORBy affixing a true copy of each to the door of said premises which is subjects ☐ actual place of business / employment ☐ dwelling house (usual place of abode) within the state. Deponent was unable with due diligence to find subject or person of suitable age and discretion thereat having called thereat on

## Address confirmation:

☒ #5 MAILINGOn March 12, 2015, service was completed by mailing a true copy of above document(s) to the above address in a 1st Class postpaid properly addressed envelope marked "Personal and Confidential" in an official depository under the exclusive care and custody of the United States Post Office in the State of New York.☒ #6 DESCRIPTIONSex: Female Color of skin: Black Color of hair: Black Age: 30-40  
Height: 5ft4in-5ft8in Weight: 131-160 Lbs. Other Features: Coworker☐ #7 WITNESS FEES

The authorized witness fee and / or traveling expenses were paid (tendered) to the recipient in the amount of \$

☒ #8 MILITARY SERVICE

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York, and was informed that said person is not.

☐ #9 OTHERSworn to before me on March 13, 2015

Patricia Rothfritz

NOTARY PUBLIC STATE OF New York

01R06055503, Qualified in Nassau County

Commission Expires February 26, 2019

Process Server, Please Sign

Assmat Abdelrahman

Job #: 1506237 Lic# 1115274

Client's File No.:



## REQUEST FOR JUDICIAL INTERVENTION

UCS-840 (3/2011)

Supreme COURT, COUNTY OF Kings

Index No: 2341/15 Date Index Issued: 02/24/2015

**CAPTION:** Enter the complete case caption. Do not use et al or et ano. If more space is required, attach a caption rider sheet.

MICHAEL GRAY,

Plaintiff(s)/Petitioner(s)

## For Court Clerk Use Only:

IAS Entry Date

Judge Assigned

RJI Date

FILED  
KINGS COUNTY CLERK  
2015 MAY 19 PM 12:09

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOE - Police Officers as yet unidentified,

Defendant(s)/Respondent(s)

## NATURE OF ACTION OR PROCEEDING:

Check ONE box only and specify where indicated.

## MATRIMONIAL

- ☐ Contested  
☐ Uncontested

NOTE: For all Matrimonial actions where the parties have children under the age of 18, complete and attach the **MATRIMONIAL RJI Addendum**.

## TORTS

- ☐ Asbestos  
☐ Breast Implant  
☐ Environmental: \_\_\_\_\_ (specify)  
☐ Medical, Dental, or Podiatric Malpractice  
☐ Motor Vehicle  
☐ Products Liability: \_\_\_\_\_ (specify)  
☒ Other Negligence: Assault and Battery (specify)  
☐ Other Professional Malpractice: \_\_\_\_\_ (specify)  
☐ Other Tort: \_\_\_\_\_ (specify)

## OTHER MATTERS

- ☐ Certificate of Incorporation/Dissolution [see NOTE under Commercial]  
☐ Emergency Medical Treatment  
☐ Habeas Corpus  
☐ Local Court Appeal  
☐ Mechanic's Lien  
☐ Name Change  
☐ Pistol Permit Revocation Hearing  
☐ Sale or Finance of Religious/Not-for-Profit Property  
☐ Other: \_\_\_\_\_ (specify)

## COMMERCIAL

- ☐ Business Entity (including corporations, partnerships, LLCs, etc.)  
☐ Contract  
☐ Insurance (where insurer is a party, except arbitration)  
☐ UCC (including sales, negotiable instruments)  
☐ Other Commercial: \_\_\_\_\_ (specify)

NOTE: For Commercial Division assignment requests [22 NYCRR § 202.70(d)], complete and attach the **COMMERCIAL DIV RJI Addendum**.

## REAL PROPERTY: How many properties does the application include?

- ☐ Condemnation  
☐ Foreclosure

Property Address: \_\_\_\_\_ Alabama \_\_\_\_\_  
Street Address City State ZipNOTE: For Foreclosure actions involving a one- to four-family, owner-occupied, residential property, or an owner-occupied condominium, complete and attach the **FORECLOSURE RJI Addendum**.

- ☐ Tax Certiorari - Section: \_\_\_\_\_ Block: \_\_\_\_\_ Lot: \_\_\_\_\_  
☐ Other Real Property: \_\_\_\_\_ (specify)

## SPECIAL PROCEEDINGS

- ☐ CPLR Article 75 (Arbitration) [see NOTE under Commercial]  
☐ CPLR Article 78 (Body or Officer)  
☐ Election Law  
☐ MHL Article 9.60 (Kendra's Law)  
☐ MHL Article 10 (Sex Offender Confinement-Initial)  
☐ MHL Article 10 (Sex Offender Confinement-Review)  
☐ MHL Article 81 (Guardianship)  
☐ Other Mental Hygiene: \_\_\_\_\_ (specify)  
☐ Other Special Proceeding: \_\_\_\_\_ (specify)

## STATUS OF ACTION OR PROCEEDING:

Answer YES or NO for EVERY question AND enter additional information where indicated.

YES NO

Has a summons and complaint or summons w/notice been filed?

☒☐

If yes, date filed: 02/24/2015

Is this action/proceeding being filed post-judgment?

☐☒

If yes, judgment date: \_\_\_\_\_

**NATURE OF JUDICIAL INTERVENTION:**

Check ONE box only AND enter additional information where indicated.

- ☐ Infant's Compromise  
☐ Note of Issue and/or Certificate of Readiness  
☐ Notice of Medical, Dental, or Podiatric Malpractice  
☒ Notice of Motion  
☐ Notice of Petition  
☐ Order to Show Cause  
☐ Other Ex Parte Application  
☐ Poor Person Application  
☐ Request for Preliminary Conference  
☐ Residential Mortgage Foreclosure Settlement Conference  
☐ Writ of Habeas Corpus  
☐ Other (specify):

Date Issue Joined: N/A

Relief Sought: Judgment - Default

Return Date: 06/11/2015

Relief Sought: Alternate Service

Return Date:

Relief Sought: Alternate Service

Return Date:

Relief Sought: Alternate Service

**RELATED CASES:**

List any related actions. For Matrimonial actions, include any related criminal and/or Family Court cases. If additional space is required, complete and attach the RJ1 Addendum. If none, leave blank.

| Case Title | Index/Case No. | Court | Judge (If assigned) | Relationship to Instant Case |
|------------|----------------|-------|---------------------|------------------------------|
|            |                |       |                     |                              |
|            |                |       |                     |                              |
|            |                |       |                     |                              |

**PARTIES:**

If additional space is required, complete and attach the RJ1 Addendum.

For parties without an attorney, check "Un-Rep" box AND enter party address, phone number and e-mail address in "Attorneys" space.

| Un-Rep                              | Parties:                                                                                                                              | Attorneys:                                                                                                                                                                                                                                                                                 | Issue Joined (Y/N):                                              | Insurance Carrier(s): |
|-------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------|-----------------------|
| <input type="checkbox"/>            | GRAY<br>Last Name<br>MICHAEL<br>First Name<br>Primary Role:<br>Plaintiff<br>Secondary Role (if any):<br>Plaintiff                     | Rynecki<br>Last Name<br>Scott<br>First Name<br>Rubenstein & Rynecki, Esqs.<br>Firm Name<br>16 Court Street, Suite 1717<br>Street Address<br>Brooklyn<br>City<br>New York<br>State<br>11241<br>Zip<br>+1 (718) 522-1020<br>Phone<br>+1 (718) 522-3804<br>Fax<br>Rubrynlaw@AOL.com<br>e-mail | <input type="radio"/> YES<br><input checked="" type="radio"/> NO |                       |
| <input type="checkbox"/>            | THE CITY OF NEW YORK<br>Last Name<br>First Name<br>Primary Role:<br>Defendant<br>Secondary Role (if any):<br>Defendant                | Zachary W. Carter, Esq.<br>Last Name<br>First Name<br>Firm Name<br>350 Jay Street<br>Street Address<br>Brooklyn<br>City<br>New York<br>State<br>11201<br>Zip<br>+1 (718) 222-2000<br>Phone<br>+1 (718) 222-2088<br>Fax<br>e-mail                                                           | <input type="radio"/> YES<br><input checked="" type="radio"/> NO | Self insured          |
| <input type="checkbox"/>            | THE NEW YORK CITY POLICE DEPARTMENT<br>Last Name<br>First Name<br>Primary Role:<br>Defendant<br>Secondary Role (if any):<br>Defendant | Zachary W. Carter, Esq.<br>Last Name<br>First Name<br>Firm Name<br>350 Jay Street<br>Street Address<br>Brooklyn<br>City<br>New York<br>State<br>11201<br>Zip<br>+1 (718) 222-2000<br>Phone<br>+1 (718) 222-2088<br>Fax<br>e-mail                                                           | <input type="radio"/> YES<br><input checked="" type="radio"/> NO | Self insured          |
| <input checked="" type="checkbox"/> | LANDI<br>Last Name<br>POLICE OFFICER MICHAEL<br>First Name<br>Primary Role:<br>Defendant<br>Secondary Role (if any):<br>Defendant     | New York City Police Department- 88th Precinct<br>Last Name<br>First Name<br>Firm Name<br>298 Classon Avenue<br>Street Address<br>Brooklyn<br>City<br>New York<br>State<br>11205<br>Zip<br>Phone<br>Fax<br>e-mail                                                                          | <input type="radio"/> YES<br><input checked="" type="radio"/> NO | N/A                   |

I AFFIRM UNDER THE PENALTY OF PERJURY THAT, TO MY KNOWLEDGE, OTHER THAN AS NOTED ABOVE, THERE ARE AND HAVE BEEN NO RELATED ACTIONS OR PROCEEDINGS, NOR HAS A REQUEST FOR JUDICIAL INTERVENTION PREVIOUSLY BEEN FILED IN THIS ACTION OR PROCEEDING.

Dated: 05/14/2015

4339

ATTORNEY REGISTRATION NUMBER

SIGNATURE

Scott E. Rynecki, Esq.

PRINT OR TYPE NAME

Print Form

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

Index No.: 2341/15

-----X  
MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER  
MICHAEL LANDI and JOHN AND JANE DOES-  
Police Officers as yet unidentified,Defendants.  
-----X**NOTICE OF MOTION****FILED**  
MAY 19 2015  
KINGS COUNTY CLERK'S OFFICE

MOTION BY:

RUBENSTEIN & RYNECKI, ESQS., attorneys for  
plaintiff.DATE, TIME & PLACE  
OF HEARING:June 11, 2015 at 9:30 a.m. at the Supreme Court,  
Kings County, 360 Adams Street, Brooklyn, New  
York. At a Motion Return Part.

RELIEF REQUESTED:

An order declaring defendant, POLICE OFFICER  
MICHAEL LANDI, in default and granting the  
plaintiff the right to set this matter down for an  
inquest and assessment of damages, and for such  
other and further relief as this Court deems just and  
proper.

SUPPORTING PAPERS:

Affirmation of SCOTT E. RYNECKI, ESQ., dated  
May 14, 2015, with exhibits annexed thereto.

ANSWERING AFFIDAVITS:

If any, are to be served seven days (7) prior to the  
return date of this motion.Dated: Brooklyn, New York  
May 14, 2015

Yours, etc.

Kings County  
Supreme Court  
Motion Return Part  
May 14, 2015SCOTT E. RYNECKI, ESQ.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorneys for Plaintiff  
MICHAEL GRAY  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718)522-1020  
File No.: 14MG04-17TO: Pro-se Defendant  
POLICE OFFICER MICHAEL LANDI  
c/o New York City Police Department- 88<sup>th</sup> Precinct  
298 Classon Avenue

## KINGS COUNTY

## PRELIMINARY CONFERENCE ORDER

SUPREME COURT OF THE STATE OF NEW YORK  
KINGS COUNTY

HON. MARTIN SCHNEIER, JHO

Michael Gray

Plaintiff(s),

- against -

The City of NY,  
NYPD, PO Michael  
Landi, + John/Jane Does

Defendant(s).

Index No.: 2341/15

Prelim. Conf. Date: 11/9/15

Comp. Conf. Date: 3/29/16

Note of Issue Date: 5/6/16

Justice: Gravano by SUMNER

IAS Part 7 #19

City File: 15 TT 008455

## I. Insurance Coverage:

- (a) Defendant City of New York and/or other defendants represented by Corporation Counsel, if any, is/are ☒ self-insured. ☐ covered by an insurance policy.
- (b) Defendant(s) \_\_\_\_\_, if not already provided, to furnish to all parties, including, evidence of excess coverage and Certificate of Insurance, within 30 days.

## II. Bill of Particulars:

- (a) A verified bill of particulars shall be served by TT within 60 days.
- (b) A supplemental bill of particulars shall be served by \_\_\_\_\_ as to item(s) \_\_\_\_\_, within 60 days.
- (c) Defendant \_\_\_\_\_ to provide a verified bill of particulars as to affirmative defenses within 60 days. \_\_\_\_\_

## III. Medical Reports and Authorizations: HIPAA compliant

- (a) Plaintiff(s) shall provide authorizations to obtain copies of the actual records of all treating and examining health care providers, including diagnostic tests, x-rays, MRIs, EMGs, CT Scans, for injuries specified in the bill of particulars, within 90 days.
- (b) Plaintiff(s) shall provide an authorization for collateral source information, if any, within 90 days.

ACR,  
pharmacist  
physical  
therapy  
records

- TT to serve fresh HIPAA compliant AZs w/ filing of NOI

All future corres:  
350 Jay St., 8th Fl

Brooklyn, NY 11221

- TT to provide HIPAA compliant AZs for D.O.C. medical records.

- ~~(a) If, plaintiff is claiming a loss of income or wages, authorizations for W2 forms, and/or IRS records, and/or employment records shall be provided for the year of, year before and year after the date of the alleged accident, as well as authorizations for the period of time lost from work as a result of the alleged accident, within 90 days.~~
- ~~(a) If, plaintiff was a student at the time of the alleged accident, plaintiff shall provide an authorization for school attendance records for the period of time lost from school as a result of the alleged accident, within 90 days.~~

IV

**Physical Examination:**

- (a) A physical examination of the plaintiff shall be scheduled within 60 days after completion of plaintiff's examination before trial.
- (b) A copy of the physician's report shall be furnished to plaintiff(s) within 60 days after the examination.
- (c) Defendant(s)' right to a further physical is reserved as to any new injuries claimed in any supplemental bill of particulars served by plaintiff(s).

V

**Depositions: (check applicable box)**

- (a) The depositions of the following parties shall take place on 2/25/16 at 10 a.m. at the following location:

350 Jay St., 8th Fl Bklyn NY 11201.

☒ All parties

☐ Plaintiff(s),

☐ Waived by \_\_\_\_\_ as to \_\_\_\_\_.

- (b) Defendant(s)' right to seek a further deposition of plaintiff(s) is reserved as to any new injuries or damages claimed in any supplemental bill of particulars served by plaintiff(s) following the plaintiff's deposition.

VI

**Other Disclosure:**

- (a) All parties shall provide the names and addresses of any witnesses to the occurrence and notice witnesses (including plaintiff); accident reports; party statements; photographs taken in the ordinary course of business, and/or to be presented at trial, within 90 days.
- (b) All parties shall supply expert witness disclosure pursuant to the CPLR.
- (c) The City of New York and/or other defendants represented by Corporation Counsel, if any, shall provide the following information to all parties within 90 days after the date of this order, subject to the date and location specified in the notice of claim (check if applicable):

~~1. Premises Liability Cases:~~

- ~~i. Departmental accident/incident report from respective City agency;~~
- ~~ii. For non-transitory conditions, maintenance and repair records and written complaints regarding the condition complained of for \_\_\_\_\_ year(s) prior to and including the date of occurrence.~~
- iii. For transitory conditions, maintenance and written complaints regarding the condition complained of for 1 month prior to and including the date of the occurrence.

4. Cases involving allegations of defective traffic signals (DOT):

- i. Maintenance and repair records for 30 days prior to and including date of occurrence;
  - ii. Complaints made for 30 days prior to and including date of occurrence;
  - iii. The name and address of the contractor responsible for maintenance of the traffic signals on date of the occurrence.
  - iv. A copy of the title and signature pages, and insurance declaration sheets and/or certificates, for all contracts in effect for two years prior to and including the date of the occurrence shall be supplied by the City within \_\_\_\_\_ days.
  - v. Contracts and all related contract documents for 2 years prior to and including the date of occurrence will be made available for inspection at either the Office of the Corporation Counsel located at \_\_\_\_\_, \_\_\_\_\_, New York, or the appropriate City agency, upon a mutually convenient appointment, pursuant to CPLR 3120(a)(1)(i).
- \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

5. Cases involving allegations of defective traffic signs (DOT):

- i. Maintenance and repair records for 6 months prior to and including the date of occurrence;
  - ii. Complaints for 6 months prior to and including the date of the occurrence.
- \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

✓ 6. Cases involving allegations of police misconduct:

The City will provide the following within 90 days after receipt from plaintiff, of an authorization:

- (i) Complaint Report;
  - (ii) Complaint Follow Up Report(s);
  - (iii) Arrest Report;
  - (iv) Memo Book entries for incident in question; — PO Michael Lane; memo book to be exchanged within 90 days
  - (v) On-line Booking Sheet.
  - (vi) Copies of the applicable section(s) of the Patrol Guide relating to Arrest + force
- \_\_\_\_\_

shall be made available by the City for inspection and copying within 90 days.

- (vii) 911 tape if it exists and sprint printout.

iv. For transitory conditions, maintenance and written complaints regarding the condition complained of for 1 month prior to and including the date of the occurrence.

(d) Surveillance videos to be provided in accordance with CPLR 3101(i)

(e) Any party who wishes to obtain prior notices of claim, pursuant to GML§ 50-g, may do so by contacting LEE McNEIL (212) 669-4329 to set up an appointment to search the index maintained at 1 Centre Street, New York, New York.

(f) Any party who wishes to obtain a MV-104, be advised that the New York City Police Department no longer maintains MV-104s beyond 30 days for accidents occurring after April 15, 1995.

(g) All searches shall be conducted based upon the date and location as described in the notice of claim.

**ALL PARTIES ARE REQUIRED PRIOR TO THIS CONFERENCE TO REVIEW ALL OUTSTANDING DISCOVERY DEMANDS SERVED UPON ANOTHER PARTY. IT IS THE INTENT OF THIS PRELIMINARY CONFERENCE TO RULE UPON ALL OF THESE OPEN DISCOVERY DEMANDS. PURSUANT TO UNIFORM RULES SECTION 202.12 (C) & (D), THIS ORDER REPRESENTS THE COURT'S RULING UPON ANY OUTSTANDING DISCOVERY DEMANDS PREVIOUSLY SERVED UPON A PARTY OTHER THAN THOSE ITEMS SPECIFICALLY EXCEPTED. THIS ORDER DOES NOT PRECLUDE ANY PARTY FROM SERVING POST-CONFERENCE DISCOVERY DEMANDS OR MAKING ANY MOTION PURSUANT TO THE CPLR.**

VII. Co-defendant(s) and/or third-party(ies) to provide the following to all parties:

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

(VIII). Third-party actions/Impleader

1. None

2. Already Commenced

3. Shall be completed within 90 days after completion of All parties depositions.

(IX) Compliance Conference:

A party seeking compliance with this order should contact the court to schedule a compliance conference prior to the service of a discovery motion.

(X) Note of Issue Date:

A note of issue may be filed in accordance with the rules of the Supreme Court, Kings County.

X 4

#19

XI

**Stipulations of Discontinuance:**

Plaintiff(s) shall ensure that a stipulation of discontinuance shall be promptly filed if the case settles before the next meeting with the court.

XII

**Additional Directives:**

- IT to serve 504 Transcript w/in 90 days  
(prior to + incl. DEA)
- City to exchange 5 yr similar + substantiated allegations  
re: PO Michael Landi IAB/CCRB history/resume  
w/in 90 days
- City to search for + exchange IAB and/or CCRB for  
subject incident w/in 90 days (to extent exists + subject  
to redaction)

Failure to comply with any of these directives may result in the imposition of costs or sanctions or other action authorized by law.

This constitutes the decision and order of the court.

Dated: 11/9/15

HON. MARTIN SCHNEIER, JHO

Appearances/Copy of this order received on the date hereof.

From: Rubenstein + Rynecki  
by: [Signature]  
Attorney / telephone for Plaintiff(s)

From: \_\_\_\_\_  
by: \_\_\_\_\_  
Attorney / telephone for Plaintiff(s)

From: ZWC NK Law Dept  
by: [Signature]  
Attorney / telephone for Defendant  
City of New York

From: \_\_\_\_\_  
by: \_\_\_\_\_  
Attorney / telephone for Defendant

From: \_\_\_\_\_  
by: \_\_\_\_\_  
Attorney / telephone for

From: \_\_\_\_\_  
by: \_\_\_\_\_  
Attorney / telephone for

From: \_\_\_\_\_  
by: \_\_\_\_\_  
Attorney / telephone for

From: \_\_\_\_\_  
by: \_\_\_\_\_  
Attorney / telephone for

FILED  
KINGS COUNTY CLERK  
2015 NOV 16 AM 9:25  
aus

X 5

Case retracted to  
Complex  
*MD*

2015-008455 - EH

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 29 day of March 2016

P R E S E N T :

Hon. ~~HON. MARTIN SCHNEIER~~ JHO  
Justice

Michael Gray

Plaintiff(s)

Cal. No. 18

Index No. 2341/15

- against -

The City of New York, NYPD,  
PO Michael Landi and  
John & Jane Does

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

- ① EBTs of TT and City to be held on  
6/16/16 @ 10<sup>00</sup> am @ 350 Jay Street,  
8th Floor, BK, NY, as previously scheduled.  
② Further CC: 7/5/16

For Clerks use only

MG

MD

Motion Seq. #

③ NOI deadline extended  
to: 8/5/16

ENTER

J.S.C.

HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04

*Sarah Prager*  
Δ City, PO Landi

*ll my  
for TT*

FILED  
KINGS COUNTY CLERK  
2016 APR - 6 AM 8:26

2015-008455-EH

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 5 day of July 20 16

P R E S E N T:

Hon.

*Schneier*

Justice

Michael Gray

Plaintiff(s)

Cal. No. 18

Index No.

2341/15

- against -

The City of New York, NYPD,

Police, R John & Tang  
Does Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

① City EBT to be held on 10/25/16 @ 3:50 PM at 8th F, BKlyn, NY.

② Further CC: 12/6/16

③ NOI: 1/27/17

For Clerks use only

MG

MD

Motion Seq. #

ENTER

J.S.C.

HON. MARTIN SCHNEIER, JHC

EJV-rev 11-04

2016 JUL 20 AM 7:43

FILED  
KINGS COUNTY CLERK

*Rubenstein*  
RUBENSTEIN

*DCity by zwc*  
DCity by zwc

2015-008455-EH

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 6 day of Dec 20 16

P R E S E N T

Hon.

HON. MARTIN SCHNEIER, JHC

Michael Gray

Plaintiff(s)

Cal. No.

Index No.

26

2341/15

- against -

The City of New York, NYPD,  
PO Michael Landis &  
John / Jane Does

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

① City EBT to be held on 12/29/16 @  
350 Jay St, 8th Fl, as prev scheduled.

② ~~FWA~~ CC: 4/11/17

③ NOI: 6/30/17

For Clerks use only

MG

MD

Motion Seq. #

ENTER

J.S.C.

HON. MARTIN SCHNEIER, JHC

EJV-rev 11-04

2016 DEC 19 AM 8:11

FILED

GR

RICHARD LOVA  
PROBATION DEPT 1  
PLAINTIFF

City by zwc

EH

2015-008455

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 11 day of April 2017

P R E S E N T

Hon.

*Produce by Genovesi*

Justice

Lara J. Genovesi  
J.S.C.

Michael Gray

Plaintiff(s)

Cal. No. 21

Index No. ~~202341~~ 2015

- against -

The City of New York, NYPD, P.O. Michael Landi  
and John Does - officers as yet unidentified  
Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC resolved as follows:

- 1) City to provide the memobook entries for the subject incident of P.O. Landi and P.O. Landi's IAB statements with regards to Plaintiff's arrest (as testified to at his EBT). The City will also provide Plaintiff's medical treatment form, All within 60 days, thus resolving Plaintiff's Post EBT demands dated 2/1/17.
- 2) City to produce P.O. Qualis for EBT on 8/7/17 at 10am at 350 Jay St., 8th Fl., Brooklyn, NY (subject to officer's availability). Plaintiff reserves right to demand further availability of EBT of P.O. Kosta.

For Clerks use only

MG

MD

Motion Seq. #

3) NOI extended to 10/20/17 ENTER

EJV-rev 11-04

~~4) further CC scheduled for~~Lara J. Genovesi  
J.S.C.

2017 MAY -3 AM 8:13

KINGS COUNTY CLERK

Kausserum  
City/Landi

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN DOES-Police Officers as yet  
unidentified,**NOTICE OF MOTION**

Index No.: 2341/2015

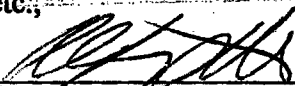
City File #: 2015-008455

-----X  
Defendants.**MOTION BY:**

Rubenstein &amp; Rynecki, Esqs., attorneys for the plaintiff

**DATE, TIME & PLACE  
OF HEARING:**September 29, 2017, 9:30am, at the Supreme Court, Kings  
County, 360 Adams Street, Brooklyn, NY, Motion Return  
Part**RELIEF REQUESTED:**An Order compelling defendants to produce witnesses Police  
Officer Qualis and Police Officer Kosta on a date certain,  
extending plaintiff's time to file a Note of Issue, and for such  
other and further relief as the Court deems just and proper.**SUPPORTING PAPERS:**Affirmations of Marc R. Battipaglia, dated September 8, 2017  
with exhibits annexed thereto.**ANSWERING AFFIDAVITS:**To be served seven (7) days prior to the return date of this  
motion.Dated: Brooklyn, New York  
September 8, 2017

Yours, etc.,

  
\_\_\_\_\_  
MARC R. BATTIPAGLIA, ESQ.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorneys for the Plaintiffs  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718)522-1020TO: Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201SEP 11 PM 3:55  
FILED  
KINGS COUNTY CLERKKINGS COUNTY  
SUPREME COURT  
MOTION SUPPORT  
APPROVED  
DATE \_\_\_\_\_

Rgt

2015-008455

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 1 day of NOV 2017

P R E S E N T :

Hon.

Boddie

HON. MARTIN SCHNEIER, JHO

Michael Gray

Plaintiff(s)

Cal. No. 12

Index No. 002341/2015

- against -

The City of New York, The New York City Police Department, Police officer Michael Landi and John Does - Police Officer's as yet unidentified

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

TT's motion dated 9/8/17 is resolved as follows:

- ① EBT of PD Mark Kost a to be held on 12/19/17 at 350 Jay St. 8th Fl Brooklyn, NY 11201.
- ② NOI extended to 4/16/18 ~~3/16/18~~.
- ③ Further CC on 3/27/18.

For Clerks use only

MGEY

MD

Motion Seq. # 2

EJV-rev 11-04

ENTER

J.S.C.

HON. MARTIN SCHNEIER, JHO

TT - RUBEN STEIN &amp; SYLVIA

City/PO Landi

2017 NOV 21 AM 8:44

KINGS COUNTY CLERK  
FILED

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

-----X  
**MICHAEL GRAY,**

Plaintiff,

- against -

**THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN DOES-Police Officers as yet  
unidentified,**

Defendants.  
-----X

**NOTICE OF MOTION**

Index No.: 2341/2015

City File #: 2015-008455

**MOTION BY:**

Rubenstein & Rynecki, Esqs., attorneys for the plaintiff

**DATE, TIME & PLACE  
OF HEARING:**

September 29, 2017, 9:30am, at the Supreme Court, Kings  
County, 360 Adams Street, Brooklyn, NY, Motion Return  
Part

**RELIEF REQUESTED:**

An Order compelling defendants to produce witnesses Police  
Officer Qualis and Police Officer Kosta on a date certain,  
extending plaintiff's time to file a Note of Issue, and for such  
other and further relief as the Court deems just and proper.

**SUPPORTING PAPERS:**

Affirmations of Marc R. Battipaglia, dated September 8, 2017  
with exhibits annexed thereto.

**ANSWERING AFFIDAVITS:**

To be served seven (7) days prior to the return date of this  
motion.

Dated: Brooklyn, New York  
September 8, 2017

Yours, etc.,

  
**MARC R. BATTIPAGLIA, ESQ.  
RUBENSTEIN & RYNECKI, ESQS.**  
Attorneys for the Plaintiffs  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718)522-1020

**TO: Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201**

2017 SEP 11 PM 4:01

2017 SEP 11 PM 4:01

**KINGS COUNTY  
SUPREME COURT  
MOTION SUPPORT  
APPROVED  
DATE 9/11/17**

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN DOES-Police Officers as yet unidentified,Defendants.  
-----X**AFFIRMATION IN  
SUPPORT**

Index No.: 2341/2015

City File #: 2015-008455

**MARC R. BATTIPAGLIA, ESQ.**, an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following under the penalty of perjury:

1. I am an attorney with the law firm of Rubenstein & Rynecki, Esqs., attorneys for the plaintiff herein, and as such, am fully familiar with the facts and circumstances of the within action, based upon the file maintained in my office.
2. This Affirmation is submitted in support of the within Motion seeking an Order compelling defendants to produce witnesses Police Officer Qualis and Police Officer Kosta on a date certain, extending plaintiff's time to file a Note of Issue, and for such other and further relief as the Court deems just and proper.
3. The underlying action is an action for serious personal injuries sustained by plaintiff as a result of an assault by police officers that occurred on April 17, 2014.
4. The action was commenced with the service of a Summons and Verified Complaint. Thereafter, issue was joined with the service of defendant Verified Answer. Annexed hereto as **Exhibit 1** are copies of said pleadings.
5. On December 29, 2016 defendant Police Officer Michael Landi appeared for a deposition. Annexed hereto as **Exhibit 2** is a copy of the transcript of the testimony given by Police Officer Michael Landi. As a result of that deposition on February 1, 2017, your affirmant served defense counsel with Notice of Depositions for Police Officer Qualis and Police Officer Kosta. Annexed hereto as **Exhibit 3** is a copy of the plaintiff's Notice of Depositions dated February 1, 2017,

Defendants failed to produce said witnesses for a deposition.

6. Then the parties appeared for a Compliance Conference on April 11, 2017 and an Order was entered into. In said court Order defendants were directed to produce witness Police Officer Michael Qualis for a deposition on August 7, 2017. The order also stated plaintiff reserved his right to demand further deposition of Police Officer Kosta. Annexed hereto as **Exhibit 4** is a copy of the Compliance Conference Order dated April 11, 2017. Defendants failed to produce Police Officer Michael Qualis for a deposition on the court ordered dated.

7. Then by agreement of all parties Police Officer Qualis' deposition was rescheduled to take place on August 25, 2017. Again defendants failed to produce Police Officer Qualis for his court ordered deposition.

8. The law is clear that when moving to compel the defendant to produce deposition witnesses with knowledge of the underlying incident, "the moving party must show (1) that the representatives already deposed had insufficient knowledge, or were otherwise inadequate, and (2) there is a substantial likelihood that the persons sought for deposition possess information which is material and necessary to the prosecution of the case" (Zollner v. City of New York, 204 A.D.2d 626, 627, 612 N.Y.S.2d 627).

9. Here, the witnesses sought for deposition were directly involved in subject incident. Police Officer Michael Landi testified that Police Officer Kosta struggled with the plaintiff at the time of his arrest (pg 39: 24-25). Police Officer Michael Landi also testified that Police Officer Qualis was at the scene of subject incident (pg 27:8). Police Officer Kosta and Police Officer Qualis are believed to have knowledge of the relevant facts and circumstances in connection with said incident. Moreover, said depositions are both material and necessary for the prosecution of plaintiff's case under CPLR § 3101.

10 CPLR §3101(a) provides that there shall be full disclosure of all evidence, material and necessary, in the prosecution of an action. The Court has held that any matter which may lead to admissible proof is discoverable. The burden of demonstrating that particular subject matter is exempt from disclosure is on the party opposing discovery. Bigman v. Dime Savings Bank of

New York, F.S.B., 153 A.D.2d 912, 545N.Y.S.2d 721 (2nd Dept, 1989)

12. As such, it is respectfully requested that this Court issue an Order compelling defendants to produce witnesses Police Officer Qualis and Police Officer Kosta on a date certain, extending plaintiff's time to file a Note of Issue, and for such other and further relief as the Court deems just and proper.

**WHEREFORE**, it is respectfully requested that the instant motion be granted in its entirety, and for such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York  
September 8, 2017

  
\_\_\_\_\_  
MARC R. BATTIPAGLIA, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN DOES-Police Officers as yet  
unidentified,Defendants.  
-----X**AFFIRMATION OF GOOD  
FAITH**

Index No.: 2341/2015

City File #: 2015-008455

MARC R. BATTIPAGLIA, ESQ., an attorney admitted to practice before the Courts of this State affirms the truth of the following under the penalty of perjury and pursuant to the provisions of the CPLR.

I am an attorney with the law firm of Rubenstein & Rynecki, Esqs. attorneys for the plaintiff herein and I submit this Affirmation in good faith in order to enlist judicial intervention of the Court in the above compelling defendants to produce witnesses Police Officer Qualis and Police Officer Kosta on a date certain, extending plaintiff's time to file a Note of Issue, and for such other and further relief as the Court deems just and proper.

This discovery is necessary to bring forth all the facts and are in the interest of justice. The actions of the defendants has severely and irrevocably prejudiced the plaintiff. The within issues could not be resolved amicably, as defendants failed to produce the requested witness for deposition. Accordingly, this matter requires the Court's intervention.

**WHEREFORE**, I respectfully pray that the within Affirmation of Good Faith be accepted.

Dated: Brooklyn, New York  
September 8, 2017

  
\_\_\_\_\_  
MARC R. BATTIPAGLIA, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as  
yet unidentified,

Defendants.  
-----X

Index #

Date of filing:

Plaintiff designates Kings  
County as the place of trial

Basis of the venue is the Locus  
of Occurrence

### SUMMONS

Plaintiff resides at  
193 Clinton Ave Apt. # 10D  
Brooklyn, New York 11205

County of Kings

### TO THE ABOVE NAMED DEFENDANT:

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

#### Defendant's address:

THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

THE NEW YORK CITY POLICE  
DEPARTMENT  
100 Church Street  
New York, New York 10007

POLICE OFFICER MICHAEL LANDI  
Tax ID# 950718  
c/o New York City Police Department- 88<sup>th</sup>  
Precinct  
298 Classon Avenue  
Brooklyn, New York 11205

#### Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.  
16 Court Street, Suite 1717  
Brooklyn, New York 11241  
(718)522-1020

Dated: Brooklyn, New York  
January 30, 2015

KINGS COUNTY CLERK  
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SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as  
yet unidentified,Defendants.  
-----X

Index No.: 2341/15

COMPLAINT

Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT  
AND BATTERY ON BEHALF OF MICHAEL GRAY**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on May 28, 2014, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H hearing of the plaintiff has not held. A date for said hearing is in the process of being scheduled.

6. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHAEL GRAY, was lawfully present at or about the intersection of Myrtle Avenue and Emerson Place, County of Kings, City and State of New York.

8. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHAEL GRAY, was assaulted and battered by defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, at the aforesaid premises.

9. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, MICHAEL GRAY, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

11. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and

was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT  
HIRING AND RETENTION ON BEHALF OF MICHAEL GRAY**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, MICHAEL GRAY.

16. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE  
ARREST ON BEHALF OF MICHAEL GRAY**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, MICHAEL GRAY.

20. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, MICHAEL GRAY, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE  
IMPRISONMENT ON BEHALF OF MICHAEL GRAY**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND

JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL  
AND NEGLIGENT INFLICTION OF EMOTIONAL  
DISTRESS ON BEHALF OF MICHAEL GRAY**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, MICHAEL GRAY.

30. That as a result of said intentional and negligent acts, the plaintiff, MICHAEL GRAY, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS  
PROSECUTION ON BEHALF OF MICHAEL GRAY**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

34. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

35. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

36. By reason of the foregoing, plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL  
RIGHTS VIOLATION ON BEHALF OF MICHAEL GRAY**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the plaintiff, MICHAEL GRAY, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

39. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, MICHAEL GRAY, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

40. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

41. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

42. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

43. That the defendants' actions were not privileged or immune.

44. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY

POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

45. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR  
PUNITIVE DAMAGES ON BEHALF OF MICHAEL GRAY**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

48. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

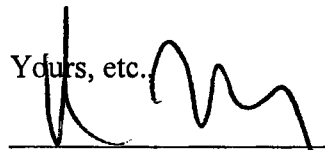
49. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**WHEREFORE**, plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action;

plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York  
January 30, 2015 .

Yours, etc.

  
ROBERT MIJUCA, ESQ.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorneys for Plaintiff  
MICHAEL GRAY  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718) 522-1020  
File No.:14MG04-17

INDIVIDUAL VERIFICATION

STATE OF NEW YORK )

) SS:

COUNTY OF KINGS )

MICHAEL GRAY, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

  
MICHAEL GRAY

Sworn to before me this 19<sup>th</sup>  
day of February, 2015



NOTARY PUBLIC

Christopher Vittorato  
Commissioner of Deeds, City of New York  
CDD number: 4-7212  
New York County  
Expires: April 1, 2016

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MICHAEL GRAY,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI AND JOHN AND JANE DOES-POLICE  
OFFICERS AS YET UNIDENTIFIED,

Defendant(s).  
-----X

ANSWER

Index #: 2341/2015

Law Dept. #: 2015-008455

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A  
THE NEW YORK CITY POLICE DEPARTMENT, by ZACHARY W. CARTER, Corporation  
Counsel, answering the complaint, allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 8-13, 15-17, 19-22, 24-26, 28-31, 33-36, 38-45, 47-49, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to the truth of the allegations set forth in paragraph(s) 1, 6, 7, inclusive.
3. Deny the allegations set forth in paragraph(s) 4, 5, inclusive, except that a notice of a claim was presented, that more than thirty days have elapsed without adjustment thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, inclusive, except that the City of New York is a municipal corporation which maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 14, 18, 23, 27, 32, 37, 46, inclusive, except as otherwise pleaded herein.

**AFFIRMATIVE DEFENSE(S)**

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

10. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. Such statements as were made concerning the plaintiff(s) were privileged as being true, or fair comment upon matters of opinion, and were made in the good faith belief in their truth without malice to person(s) having a like duty or interest therein.

12. Plaintiff(s) did not submit to an examination pursuant to Section 50-h, General Municipal Law, before commencement of this action.

13. Plaintiff(s)' complaint fails to allege a prima facie case against the defendant answering hereby.

**WHEREFORE**, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

ZACHARY W. CARTER  
Corporation Counsel  
100 Church Street  
New York, New York 10007

**RUBENSTEIN & RYNECKI**

ATTORNEYS AT LAW  
16 COURT STREET, SUITE 1717  
BROOKLYN, NEW YORK 11241  
Tel. (718)522-1020  
Fax. (718)522-3804

SANFORD A. RUBENSTEIN  
SCOTT RYNECKI\*  
ROBERT MIJUCA

KLIOPATRA VRONTOS\*  
RICHARD M. LEVY  
HARPER SMITH  
JEFFREY DORMAN\*  
FARRIS FAYYAZ

\* ADMITTED IN NY & NJ

JANUARY 23, 2017

ZACHARY W. CARTER  
350 JAY ST  
BROOKLYN, N.Y. 11201

Re: MICHAEL GRAY

Dear SIR:

Enclosed is an original and one copy of the transcript of the testimony given by your client, P.O. MICHAEL LANDI at a deposition held on DECEMBER 29, 2016.

Please have your client execute the original transcript and return it to our office as soon as possible.

Very truly yours,



JACK JACILLA

/JJ  
Enclosures

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

- against -

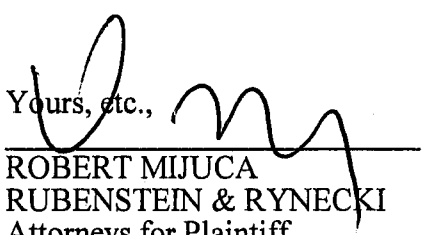
THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICER OFFICER MICHAEL  
LANDI and JANE DOES-POLICE OFFICERS AS YET  
UNIDENTIFIED,Defendants.  
-----X**DEMAND FOR REVIEW  
AND SIGNATURE OF  
DEPOSITION**

Index No. 2341/15

**PLEASE TAKE NOTICE**, that pursuant to CPLR 3116(a), the undersigned demands that you review, make corrections if necessary, and sign the annexed deposition of P.O. MICHAEL LANDI, which was taken on DECEMBER 29, 2016, and return an executed copy of the deposition to the undersigned within 60 days of the date of this notice;

**PLEASE TAKE FURTHER NOTICE**, that corrections, if any, must be made on the annexed errata sheet, which must be separately signed and notarized;

**PLEASE TAKE FURTHER NOTICE**, that changes will not be permitted after the passage of 60 days and that if the deposition is not signed and returned within 60 days of the date of this notice, the deposition may be used as if it had been signed.

Dated: Brooklyn, New York  
JANUARY 23, 2017Yours, etc., ROBERT MIJUCA  
RUBENSTEIN & RYNECKI  
Attorneys for Plaintiff  
GRAY  
16 Court Street, Suite 1717  
Brooklyn, New York 11201  
(718) 522-1020TO:  
ZACHARY W. CARTER  
350 JAY ST  
BROOKLYN, N.Y. 11201

AFFIDAVIT OF SERVICE

STATE OF NEW YORK, COUNTY OF KINGS ss.:

JACK JACILLA being duly sworn, deposes and says:

I am over 18 years of age, I am not a party to the action, and I reside in Kings County in the State of New York.

I served a true copy of the annexed

## DEMAND FOR REVIEW AND SIGNATURE OF DEPOSITION

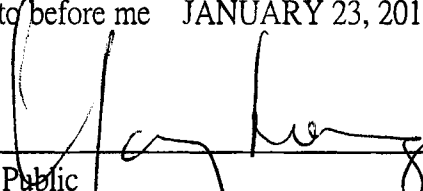
on JANUARY 23, 2017

by mailing the same in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service within the State of New York, addressed to the last known address of the addressee as indicated below:

ZACHARY W. CARTER  
350 JAY ST  
BROOKLYN, N.Y. 11201

  
\_\_\_\_\_  
JACK JACILLA

Sworn to before me JANUARY 23, 2017

  
\_\_\_\_\_  
Notary Public

YANG FUNG LEONG  
Notary Public, State of New York  
No. 01LE6136366  
Qualified in Kings County  
Commission Expires November 7, 2017

Index No.

2341

Year

RECEIVED NYSCEF: 07/30/2020

2015

PLEASE take notice that the within is a (certified) true copy of a duly entered in the office of the clerk of the within named court on

Dated,

Yours, etc.

RUBENSTEIN &amp; RYNECKI ESQS.

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

To

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on

at

M.

Dated,

Yours, etc.

RUBENSTEIN &amp; RYNECKI ESQS.

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

To

Attorney(s) for

# SUPREME COURT OF THE STATE OF NEW YORK COUNTY OF KINGS

MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT  
POLICE OFFICER MICHAEL LANDI and JOHN DOES-Police Officers as ye  
unidentified,

Defendants.

## DEMAND FOR REVIEW AND SIGNATURE OF DEPOSITION

Signature (Rule 130-1.1-a)

Print name beneath

RUBENSTEIN &amp; RYNECKI ESQS.

Attorneys for

Office and Post Office Address, Telephone

16 COURT ST.

BROOKLYN, N.Y. 11241

(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for

RUBENSTEIN &amp; RYNECKI ESQS.

COPY

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MICHAEL GRAY,

Plaintiff,

-against-

Index No.  
2341/15

THE CITY OF NEW YORK, THE NEW YORK  
CITY POLICE DEPARTMENT, POLICE OFFICER  
MICHAEL LANDI and Jane Does-Police  
Officers as yet unidentified

Defendants.

-----X

350 Jay Street  
Brooklyn, New York

DATE: December 29, 2016  
TIME: 10:26 a.m.

EXAMINATION BEFORE TRIAL of POLICE  
OFFICER MICHAEL LANDI, on behalf of the NEW  
YORK CITY POLICE DEPARTMENT, one of the  
Defendants in the above-entitled action, taken  
by the Plaintiff, held at the above time and  
place before Nancy Nasca, a Notary Public  
within and for the State of New York, pursuant  
to Order.

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S T I P U L A T I O N S

IT IS STIPULATED AND AGREED by and between the attorneys for the respective parties herein, and in compliance with Rule 221 of the Uniform Rules for the Trial Courts:

THAT the parties recognize the provision of Rule 3115 subdivisions (b), (c) and/or (d). All objections made at a deposition shall be noted by the officer before whom the deposition is taken, and the answer shall be given and the deposition shall proceed subject to the objections and to the right of a person to apply for appropriate relief pursuant to Article 31 of the CPLR.

THAT every objection raised during a deposition shall be stated succinctly and framed so as not to suggest an answer to the deponent and, at the request of the questioning attorney, shall include a clear statement as to any defect in form or other basis or error or irregularity. Except to the extent permitted by CPLR Rule 3115 or by this rule, during the course of the examination persons in attendance shall not make statements or comments that

1

2 interfere with the questioning.

3

4 THAT a deponent shall answer all  
5 questions at a deposition, except (i) to  
6 preserve a privilege or right of  
7 confidentiality, (ii) to enforce a limitation  
8 set forth in an order of a court, or (iii) when  
9 the question is plainly improper and would, if  
10 answered, cause significant prejudice to any  
11 person. An attorney shall not direct a  
12 deponent not to answer except as provided in  
13 CPLR Rule 3115 or this subdivision. Any  
14 refusal to answer or direction not to answer  
15 shall be accompanied by a succinct and clear  
16 statement of the basis therefore. If the  
17 deponent does not answer a question, the  
18 examining party shall have the right to  
19 complete the remainder of the deposition.

20

21 THAT an attorney shall not interrupt  
22 the deposition for the purpose of communicating  
23 with the deponent unless all parties consent or  
24 the communication is made for the purpose of  
25 determining whether the question should not be  
26 answered on the grounds set forth in section  
27 221.2 or these rules and, in such event, the

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reason for the communication shall be stated  
for the record succinctly and clearly.

THAT failure to object to any question  
or to move to strike any testimony at this examination  
shall not be a bar or waiver to make such objection  
or motion at the time of the trial of this action,  
and is hereby reserved; and

THAT this examination may be signed and  
sworn to by the witness examined herein before  
any Notary Public, but failure to do so or to  
return the original of the examination to the  
attorney on whose behalf the examination is  
taken shall not be deemed a waiver of the  
rights provided by Rules 3116 and 3117 of the  
CPLR, and shall be controlled thereby, and

THAT certification and filing of the  
original of this examination are waived; and

THAT the questioning attorney shall  
provide counsel for the witness examined herein  
with a copy of this examination at no charge.

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A P P E A R A N C E S:

RUBENSTEIN & RYNECKI, ESQ'S  
Attorneys for Plaintiff  
16 Court Street, Suite 1717  
Brooklyn, New York 11241  
BY: ALAN OSTROW, ESQ.

ZACHARY W. CARTER, ESQ.  
Attorneys for Defendants  
350 Jay Street, 8th floor  
Brooklyn, New York, 11201  
BY: ANDREW KLABEN, ESQ.

1 LANDI

2 M I C H A E L L A N D I, called as a  
3 witness, having been first duly sworn by a  
4 Notary Public in and of the State of New  
5 York, was examined and testified as  
6 follows:

7 (Whereupon, Plaintiff's Exhibits  
8 1, 2, 3, 4, 5, 6, 7, 8, 9, several  
9 documents, was marked for identification,  
10 as of this date by the Reporter.)

11

12 EXAMINATION BY

13 MR. OSTROW:

14 Q. Would you state your name for the  
15 record, please?

16 A. Police Officer Michael Landi.

17 Q. Would you state your address for  
18 the record?

19 A. 1 Police Plaza.

20 Q. Good morning, Officer. My name is  
21 Alan Ostrow. I am here on behalf of Rubenstein  
22 & Rynecki, they represent the Plaintiff in this  
23 case, Mr. Michael Gray.

24 I am going to ask you questions  
25 about an event that took place back on April

1 LANDI

2 17th 2014.

3 If you don't understand any of my  
4 questions, please let me know and I will  
5 rephrase it.

6 If you need to speak with your  
7 attorney, that's fine. I only ask if I asked  
8 you a question, you have to answer the question  
9 before you speak your attorney.

10 If you need a break for any reason  
11 let me know, the same rule applies, if a  
12 question has been asked you have to please  
13 answer the question before, then we can go into  
14 a break.

15 All of your responses have to be  
16 verbal, the court reporter cannot take down if  
17 you say, uh-huh or huh-uh, or you make a  
18 gesture.

19 Do you understand these  
20 instructions?

21 A. Yes.

22 Q. Officer Landi, you gave us an  
23 address 1 Police Plaza, that's your work  
24 address, correct?

25 A. Yes.

1 LANDI

2 MR. OSTROW: Counsel, will you  
3 accept service on behalf of the witness?

4 MR. KLABEN: Yes, at the time of  
5 trial if he is so employed by the City of  
6 New York.

7 MR. OSTROW: If he is no longer  
8 employed by the City of New York will you  
9 provide his last known address?

10 MR. KLABEN: We will accept  
11 service while he is employed.

12 MR. OSTROW: Then I think we need  
13 an address. We have to call the Judge.

14 MR. KLABEN: We are not giving an  
15 address.

16 MR. OSTROW: If he is no longer  
17 employed by the City at all?

18 MR. KLABEN: Yes.

19 MR. OSTROW: Thank you.

20 Q. Officer, what is your full name?

21 A. Michael Landi.

22 Q. Do you have a middle name?

23 A. Yes.

24 Q. What is your middle name?

25 A. John.

1 LANDI

2 Q. Any nick-names?

3 A. No.

4 Q. Are you currently employed?

5 A. Yes.

6 Q. By whom?

7 A. New York City Police Department.

8 Q. What location?

9 A. 1 Police Plaza.

10 Q. Is that where you work?

11 MR. KLABEN: The precinct.

12 A. 298 Classon Avenue, 88 Precinct.

13 Q. What is the zip code?

14 A. I am not sure actually.

15 Q. What is your rank?

16 A. Police officer.

17 Q. What is your shield number?

18 A. 762.

19 Q. Have you ever been issued any  
20 other shield number?

21 A. No.

22 Q. How long have you been at the 88  
23 Precinct?

24 A. Going on 3 years now.

25 Q. Just generally what are your

1 LANDI

2 duties at the 88 right now?

3 A. I am a field intelligence officer.

4 Q. What does a field intelligence  
5 officer do?

6 A. Search warrants, confidential  
7 informant and investigations.

8 Q. What type of investigations?

9 A. Follow up.

10 Q. On what, generally?

11 A. Robbery, larceny, assist the  
12 Detective Squad.

13 Q. Were you employed back on April  
14 17th 2014?

15 A. Yes.

16 Q. By whom?

17 A. New York City Police Department.

18 Q. What was your rank at the time?

19 A. Police officer.

20 Q. What was your assignment at that  
21 time?

22 A. Patrol.

23 Q. Where?

24 A. In the 88 Precinct.

25 Q. When you say, patrol, generally

1 LANDI

2 what would you do?

3 A. Just answer radio runs and respond  
4 to jobs, 911 calls.

5 Q. Sorry?

6 A. 911 calls.

7 Q. I don't want to know your date of  
8 birth, but what is your age?

9 A. 31.

10 Q. What is your height?

11 MR. KLABEN: Objection. Why do  
12 you need to know?

13 MR. OSTROW: I always need to know  
14 height and weight. Off the record.

15 (Whereupon, a discussion was held  
16 off the record.)

17 Q. What is your weight right now?

18 A. Right now?

19 Q. Yes.

20 A. 220.

21 Q. Back on April 17th 2014 was it  
22 about the same?

23 A. Relatively.

24 Q. More or less?

25 A. Probably a little less.

1 LANDI

2 Q. What is your highest level of  
3 education?

4 A. Bachelors.

5 Q. In what?

6 A. Political science.

7 Q. Have you reviewed any documents or  
8 records pertinent to this lawsuit?

9 MR. KLABEN: By counsel,  
10 Preliminary Conference Order Response we  
11 severed, that you marked.

12 Q. Have you read a summary, or read  
13 testimony, or summary of testimony of anyone,  
14 when I say testimony, either 50-H hearing or  
15 EBT?

16 A. No.

17 Q. Other than members of the New York  
18 City Law Department, lawyers for the City of  
19 New York, or lawyers for the New York City  
20 Police Department, or perhaps your personal  
21 lawyer, have you discussed this case with  
22 anyone from the New York City Police  
23 Department?

24 A. No.

25 Q. Have you ever served in the

1 LANDI

2 military?

3 A. No.

4 Q. Have you ever served, other than  
5 with your employment with the New York City  
6 Police Department, have you ever been employed  
7 in the field of law enforcement?

8 A. No.

9 Q. Have you ever been convicted of a  
10 crime, before April 17th 2014?

11 MR. KLABEN: Objection.

12 A. No.

13 Q. Did you attend the New York City  
14 Police Academy?

15 A. Yes.

16 Q. From when to when?

17 A. July of 2011 to December 2011.

18 Q. Upon graduation where was your  
19 first assignment?

20 A. 67 Precinct.

21 Q. Where is that?

22 A. East Flatbush.

23 Q. What is the address?

24 A. 2820 Snyder Avenue.

25 Q. What was your assignment there?

1 LANDI

2 A. Police officer.

3 Q. What?

4 A. Police officer.

5 Q. At the 67 Precinct what were your  
6 duties, generally?

7 A. Answer radio runs.

8 Q. How long were you working at the  
9 67?

10 A. Approximately, 2 years.

11 Q. Who was your supervisor, your  
12 immediate supervisor?

13 A. I had numerous.

14 Q. When you left?

15 A. Sergeant Gong.

16 Q. Spell that?

17 A. G- o- n- g.

18 Q. What is his first name?

19 A. Daniel.

20 Q. Is Officer Gong still at the 67?

21 A. I don't know.

22 Q. Do you know if he is still with  
23 the New York City Police Department?

24 A. I don't know.

25 (INSERT) \_\_\_\_\_

1 LANDI

2 MR. OSTROW: We will just leave a  
3 blank in the record. I will put it in  
4 writing. We ask for Police Officer Gong's  
5 current employment status, if he is still  
6 employed with the New York City Police  
7 Department for the City of New York, if  
8 not, his last known address.

9 MR. KLABEN: Taken under  
10 advisement. Put your request in writing.

11 Q. Why did you leave there?

12 A. I was sent to Manhattan Viper  
13 Unit.

14 Q. What is Manhattan Viper Unit?

15 A. I monitored cameras in New York  
16 City housing buildings.

17 Q. That would be under the apotheosis  
18 of NYPD, or Housing Police?

19 A. Well, it's all under NYPD.

20 Q. How long did you do that,  
21 approximately?

22 A. Six months.

23 Q. Who was your supervisor there?

24 A. Lieutenant Cobb.

25 Q. K- a- l- b?

1 LANDI

2 A. C- o- b- b.

3 Q. What is the first name?

4 A. A female, I'm not sure.

5 Q. Is she still there?

6 A. No, she is not.

7 Q. Do you know where she is?

8 A. She is not with NYPD anymore.

9 Q. Why did you leave that job?

10 A. I was moved to the 88 shortly  
11 after.

12 Q. To the 88?

13 A. Yes.

14 Q. Have you been with the 88 since?

15 A. Yes.

16 Q. Have you always had the same  
17 position at the 88?

18 A. No.

19 Q. When you first started there what  
20 did you do?

21 A. I did patrol.

22 Q. When you say, patrol, is that foot  
23 patrol?

24 A. No, in a car, sector.

25 Q. How long did you do that?

1 LANDI

2 A. About a year.

3 Q. Who was your supervisor during  
4 that year?

5 A. I had numerous. The last one?

6 Q. Yes.

7 A. Sergeant Derets.

8 Q. Spell that?

9 A. D- e- r- e- t- s.

10 Q. Do you know his or her first name?

11 A. Boris.

12 Q. Is he still there?

13 A. Yes.

14 Q. Why did you leave that position?

15 A. I moved on to the Conditions Unit.

16 Q. What is the Conditions Unit?

17 A. You basically enforce quality of  
18 life, arrests and summonses.

19 Q. How long did you do that for?

20 A. Approximately six months.

21 Q. Who was your supervisor there?

22 A. Sergeant Hannah.

23 Q. H- a- n- n- a- h?

24 A. Yes.

25 Q. First name?

1 LANDI

2 A. I'm not sure.

3 Q. Is that a man or woman?

4 A. A man.

5 Q. Do you know if he is still at the

6 88?

7 A. No, he retired.

8 Q. What did you do after that?

9 A. Anti-Crime.

10 Q. What were your responsibilities  
11 there?

12 A. Just enforcing major crime, felony  
13 crimes.

14 Q. How long were you doing that for?

15 A. I believe four months.

16 Q. Who was your supervisor then?

17 A. Sergeant Aliffi.

18 Q. Spell that?

19 A. A- l- i- f- f- i.

20 Q. First name?

21 A. Frank.

22 Q. Is he still there?

23 A. No, he is in the 52.

24 Q. Is that the 52 Precinct?

25 A. Yes.

1 LANDI

2 Q. What did you do after that?

3 A. My current position now, field  
4 intelligence officer.

5 Q. Back on April 17th 2014 what were  
6 the geographic boundaries of the 88 Precinct,  
7 start with north?

8 A. Would be Flushing Avenue is north,  
9 going down to Atlantic Avenue south.

10 Q. East?

11 A. East is Classon Avenue, westbound  
12 Flatbush Avenue extension.

13 Q. Back on April 17th 2014 was Myrtle  
14 Avenue and Emerson Place within the geographic  
15 boundaries of the 88 Precinct?

16 A. Yes.

17 Q. Back on April 17th 2014, and  
18 again, please refer to the documents that have  
19 been marked today if you need to for any  
20 reason, just tell me what you are referring to.

21 Do you know what tour you were  
22 working?

23 A. Yes.

24 Q. What was your tower?

25 A. 1500 hours by 2335.

1 LANDI

2 Q. What day of the week?

3 A. Thursday.

4 Q. Thursday April 17th 2014, what  
5 days did you work during that week?

6 A. It was rotating.

7 Q. Is there anything that would  
8 indicate what days you worked that week?

9 A. Refer to my memo book entries.

10 Q. Thank you.

11 A. That was Thursday, I am not sure  
12 of what days that week I worked though.

13 Q. I don't believe I got an answer  
14 earlier. How tall are you?

15 A. 5'9.

16 MR. KLABEN: Objection.

17 Q. If you recall what your assignment  
18 was, or is there anything in the records that  
19 indicate what your assignment was back on April  
20 17th 2014?

21 A. Referring to my memo book. I  
22 can't tell, it's redacted.

23 Q. Anything else, any of the records  
24 that you could produce here that would indicate  
25 what your assignment was that day?

1 LANDI

2 A. It was patrol.

3 Q. Were you working with any  
4 partners?

5 A. Yes.

6 Q. Who were you working with?

7 A. I'm not a hundred percent because  
8 it's redacted in my memo book.

9 MR. OSTROW: I am going to reserve  
10 my right. I object number one. I reserve  
11 the right to a further EBT of this witness  
12 with un-redacted memo book indicating  
13 names of the officers that were with him  
14 at the time of this occurrence.

15 Q. Is there anything else that would  
16 indicate who you were working with that day, or  
17 do you have a recollection of who you were  
18 working with that day?

19 MR. KLABEN: Don't speculate.

20 A. I'm not sure.

21 Q. When you say that you were on  
22 patrol, your assignment was patrol, were you in  
23 uniform?

24 A. Yes.

25 Q. Were you assigned to a vehicle?

1 LANDI

2 A. Yes.

3 Q. A marked vehicle or unmarked  
4 vehicle?

5 A. Marked.

6 Q. Is there anything in the records  
7 that have been produced here today that you  
8 indicate the number of the unit you were  
9 driving that day?

10 A. It would be in the memo book, but  
11 it's redacted right now.

12 MR. OSTROW: Okay. Off the  
13 record.

14 (Whereupon, a discussion was held  
15 off the record.)

16 MR. OSTROW: There has been  
17 testimony in this case that Plaintiff was  
18 assaulted by four police officers. You  
19 now taken this police officer's memo book  
20 and redacted the names of other officers  
21 he was working with on the date of the  
22 incident. I never seen this in 35 years.

23 MR. KLABEN: We turned over the  
24 time of the incident at 8:30. What we  
25 turned over is not redacted from the time

1 LANDI

2 of incident only.

3 MR. OSTROW: But you redacted  
4 names of officers that he as working with.

5 MR. KLABEN: Make a request in  
6 writing for the names and we will follow  
7 up in writing if we can, if we know them.

8 MR. OSTROW: Of course.

9 Q. Are there any records at the 88  
10 Precinct that would indicate the officers that  
11 you were teamed up with that day?

12 A. My original memo book.

13 MR. OSTROW: Okay. I call for the  
14 original memo book un-redacted.

15 MR. KLABEN: Please make all  
16 requests in writing. Taken under  
17 advisement.

18 MR. OSTROW: If we have to make a  
19 motion I want this officer back for  
20 testimony.

21 Q. About 8:00 to 8:30 on April 17th  
22 2014 were you at the location Myrtle Avenue and  
23 Emerson Place, Borough of Brooklyn, City or  
24 State of New York?

25 A. At that time I was originally at

1 LANDI

2 Myrtle and Washington Ave.

3 Q. Did anything bring you to the  
4 location of Myrtle Avenue and Emerson Place, in  
5 the Borough of Brooklyn that evening?

6 A. Yes, that was a radio run, 911  
7 call.

8 Q. What did the 911 call say?

9 A. It came over as 52, which is  
10 dispute with a firearm.

11 Q. Where was that dispute?

12 A. The call came from Washington Ave  
13 and Myrtle.

14 Q. You were right there?

15 A. Yes, that's what had brought me  
16 there was a 911 call.

17 Q. But I asked you before, did  
18 anything bring you to Myrtle Avenue and Emerson  
19 Place?

20 A. Yes.

21 Q. What brought you to Myrtle Avenue  
22 and Emerson Place?

23 A. A show up.

24 Q. When you say, a show up, what are  
25 you talking about?

1 LANDI

2 A. Officers had someone stopped  
3 there. They wanted the complainant brought  
4 there to see if it was positive ID.

5 Q. You brought the complaint over?

6 A. Yes.

7 Q. Or person that had been stopped?

8 A. The complainant.

9 Q. The person that the police  
10 officers had stopped for the complainant to ID  
11 was Michael Gray, correct?

12 A. Correct.

13 Q. What did the complainant say that  
14 Mr. Gray did?

15 A. He stated that he whipped him in  
16 the face with the dog leash. He pulled a knife  
17 on him or sharp object, I am not sure of the  
18 exact wording at the time, and threatened to  
19 kill him.

20 He also said he brandish what he  
21 thought was a firearm in his waistband.

22 Q. When did this supposedly all take  
23 place?

24 A. In-between 2000 hours and 2030  
25 hours.

1 LANDI

2 Q. That's within a half hour of the  
3 time you got there, 2000?

4 A. Yes.

5 Q. Within the half hour you got there  
6 the officers that had Mr. Gray, were they in  
7 plain clothes or uniform?

8 A. Plain clothes.

9 Q. Did they have their shields?

10 A. I don't recall.

11 Q. Did they have their shields  
12 visible?

13 A. I don't recall.

14 Q. Did they have a car with them?

15 A. Yes.

16 Q. The car that they had was marked  
17 or unmarked?

18 A. Unmarked.

19 Q. Do you know any of those officers?

20 A. Yes.

21 Q. Can you tell me their names?

22 A. Mark Costa.

23 Q. Spell last name?

24 A. C- o- s- t- a.

25 Q. Is he from the 88 Precinct?

1 LANDI

2 A. At that time he was.

3 Q. Is he still there?

4 A. No.

5 Q. Do you know where he is now?

6 A. 103.

7 Q. Who else was there?

8 A. Camille Gualis, G- u- a- l- i- s.

9 One or two L's I'm not sure.

10 Q. Is she still at the 88?

11 A. No.

12 Q. Do you know where she is now?

13 A. Brooklyn North Narcotics.

14 Q. Do they work out of a precinct?

15 A. I'm not sure what module that is.

16 (INSERT) \_\_\_\_\_.

17 MR. OSTROW: I will leave a blank.

18 Q. Who else was there?

19 A. I am not sure.

20 Q. Was there a third officer?

21 A. There was numerous officers, I am  
22 not sure of the exact number.

23 Q. All of the officers that were  
24 there, were they in plain clothes, or any of  
25 them in uniform?

1 LANDI

2 A. I'm not sure.

3 Q. Would a record be kept at the 88  
4 Precinct anywhere that indicate all of the  
5 officers that appeared at Myrtle Avenue and  
6 Emerson Place for the arrest, at the time of  
7 the arrest of Michael Gray?

8 A. Just to clarify, you ask if there  
9 is any paperwork, I wouldn't know.

10 Q. Paperwork, any sort of record?

11 A. I wouldn't know that.

12 Q. Who would know that?

13 A. I don't know.

14 MR. OSTROW: Can I have this  
15 marked?

16 (Whereupon, Plaintiff's Exhibit  
17 10, a document, was marked for  
18 identification, as of this date by the  
19 Reporter.)

20 Q. Do you know what that document is?

21 A. Yes, it looks like a Sprint  
22 report.

23 Q. Is there anything on that record  
24 that would indicate the names of the officers  
25 who responded to the call involving Mr. Gray,

1 LANDI

2 on April 17th 2014?

3 A. The names?

4 Q. Yes.

5 A. No.

6 Q. Is there anything that would  
7 indicate the police cars or units that were  
8 sent there?

9 A. Yes, the units.

10 Q. What units were sent there, or  
11 responded?

12 A. From what appears, it looks like  
13 88 David.

14 Q. 88?

15 A. 88 sector David, D.

16 Q. Okay.

17 A. That's one unit. Let me look  
18 through it, it's confusing.

19 Q. Are you familiar with Sprint  
20 reports generally?

21 A. Yes. 88 George, 88 Adam. They  
22 list 88 SP8, which I am not sure what that is.  
23 They have 88 Eddy here as well, then it looks  
24 like that's it.

25 Q. Is there any indication, are you

1 LANDI

2 aware of any designation that is used on the  
3 Sprint reports to determine a marked as opposed  
4 to unmarked vehicle?

5 A. Well, all of the ones that are  
6 letters such as Adam, Eddy, George, they are  
7 all marked vehicles.

8 Q. The ones that are unmarked  
9 vehicles, how are they identified?

10 A. They are usually crime, or unit  
11 conditions. There is nothing in there that  
12 indicated crime or condition.

13 Q. So we don't have any way of  
14 finding out who the plain clothes officers that  
15 allegedly apprehended Mr. Gray was that night,  
16 is that correct?

17 A. I told you two names that I  
18 remember being there, other than that no, not  
19 that I am aware of.

20 Q. The 88 keeps roll call, correct?

21 A. Yes.

22 Q. They would have the names of  
23 everybody that was working on that tour?

24 A. Yes.

25 Q. And their assignments?

1 LANDI

2 A. Yes.

3 MR. OSTROW: I am going to call  
4 for a copy of the roll call of April 17th  
5 2014, for the tour that was at working  
6 about 8:30 p.m.

7 MR. KLABEN: Please make all  
8 requests in writing. Taken under  
9 advisement.

10 MR. OSTROW: Also, so far the  
11 witness named two officers that were at  
12 the scene, I request their EBT, Police  
13 Officer Costa and Police Officer Gualis.

14 MR. KLABEN: Please make all  
15 requests in writing. Taken under  
16 advisement.

17 Q. What time did you arrive at the  
18 location Myrtle and Emerson, approximately?

19 A. Let me look at my notes.  
20 Approximately in-between 2022 and 2033 hours.

21 Q. When you arrived were there any  
22 other police officers already there, this is  
23 Myrtle and Emerson?

24 A. Yes.

25 Q. Who else was there?

1 LANDI

2 A. PO Costa.

3 Q. Just the two plain clothes you  
4 recall?

5 A. Yes, numerous cops were there but  
6 that's the only two I can remember by face.

7 Q. Approximately how many police  
8 officers?

9 A. More than three.

10 Q. Were they all from the 88?

11 A. Yes.

12 Q. Was that the first time you  
13 encounter Michael Gray?

14 A. Yes.

15 Q. When you arrived at the scene was  
16 anybody speaking to Mr. Gray?

17 A. I don't recall.

18 Q. When you arrive at the scene did  
19 you speak to Mr. Gray?

20 A. No.

21 Q. Did any of the plain clothes  
22 officers -- I can't remember if I asked this  
23 before.

24 Did any of the plain clothes  
25 officers have their shields displayed when you

1 LANDI

2 arrived?

3 MR. KLABEN: Objection. Asked and  
4 answered.

5 A. I don't recall.

6 Q. Do you know if Mr. Gray was  
7 searched at the scene?

8 A. No, I'm not sure.

9 Q. Do you know if any weapon or  
10 contraband were found on his person, at the  
11 scene?

12 When I say, at the scene, talking  
13 Myrtle Avenue and Emerson Place.

14 A. Yes, I was informed that there  
15 was.

16 Q. What were you informed was found?

17 A. I don't know the exact name of it,  
18 looks like kind of like a pitchfork, like three  
19 prong dagger.

20 Q. How big was it?

21 A. From what I recall approximately a  
22 foot long.

23 Q. Did you see this?

24 A. Not on scene.

25 Q. Who told you this?

1 LANDI

2 A. PO Costa.

3 Q. Did Police Officer Costa take  
4 custody of that?

5 A. Yes.

6 Q. Do you know if she invoiced it?

7 A. He.

8 Q. Sorry.

9 A. No, I did.

10 Q. You invoiced it?

11 A. Yes.

12 Q. Can you show me the document that  
13 is here today that you invoice that, can you  
14 show me?

15 A. I don't have it.

16 Q. But you have the invoice, the two  
17 page invoice for property?

18 A. Yes.

19 MR. OSTROW: I got a question  
20 pending.

21 THE WITNESS: Sorry.

22 Q. I ask, do you see anywhere on your  
23 invoice a 1 foot long three prong dagger or  
24 pitchfork. We are talking about Plaintiff's  
25 Exhibit 9 which consists of two pages that was

1 LANDI

2 prepared by you?

3 A. That's what I am looking at yes,  
4 but no, I do not see it.

5 MR. KLABEN: We will take a  
6 minute.

7 (Whereupon, a brief recess was  
8 taken.)

9 Q. Is there anything about your  
10 testimony you would like to change or correct?

11 A. No, just I am not a hundred  
12 percent just because I am not seeing the  
13 property clerk invoice that I definitely  
14 voucher the weapon.

15 Q. But you took possession of it from  
16 Officer Costa?

17 A. Yes.

18 Q. Do you know what you did with it?

19 A. I am pretty sure I voucher it.

20 Q. If you voucher it means you gave  
21 it to the property clerk?

22 A. Yes.

23 Q. We have a property clerk voucher,  
24 Exhibit 8?

25 A. Yes.

1 LANDI

2 Q. Does it say anywhere on Exhibit 8

3 --

4 A. No, it does not.

5 Q. So could be, assume that somehow  
6 either it was not in possession of Mr. Gray, or  
7 that it got lost somehow at the time it was in  
8 your possession, until the time it was supposed  
9 to be in the property clerk's office?

10 MR. KLABEN: Objection. If you  
11 understand the question. If not can you  
12 rephrase it.

13 Q. Do you understand what I am  
14 asking?

15 A. Can you ask it again?

16 Q. What happened to the, what you  
17 describe as a foot long three prong dagger from  
18 the time that Officer Costa gave it to you,  
19 until the time it should have been in the  
20 property clerk's possession?

21 MR. KLABEN: Objection. If you  
22 know you can answer.

23 A. I don't know.

24 MR. OSTROW: Everything is if you  
25 know.

1 LANDI

2 Q. When you say the property clerk,  
3 this is going to be the property clerk at the  
4 88?

5 A. Yes.

6 Q. Were any other weapons found on  
7 Mr. Gray when he was searched?

8 A. I don't recall.

9 Q. Did you search him?

10 A. No.

11 Q. Do you know who searched him?

12 A. No.

13 Q. When you first saw Mr. Gray, when  
14 you first observed him, was he handcuffed?

15 A. Yes.

16 Q. So you had nothing to do with the  
17 handcuffing?

18 A. No.

19 Q. Do you know who had handcuffed  
20 him?

21 A. No.

22 Q. Would it be safe to assume it was  
23 one of the plain clothes officers that  
24 handcuffed him?

25 A. I would assume.

1 LANDI

2 Q. When you saw Mr. Gray for the  
3 first time was he bleeding from any part of his  
4 body?

5 A. No, not that I could tell.

6 Q. Did anybody tell you whether Mr.  
7 Gray tried to flee from the scene?

8 A. No.

9 Q. Did anybody tell you he tried to  
10 avoid being cuffed?

11 A. Yes.

12 Q. Who told you that?

13 A. Officer Costa.

14 Q. Did he say, Officer Costa say what  
15 Mr. Gray did to avoid being handcuffed?

16 A. He said he pulled the dagger.

17 Q. And the dagger is that foot long  
18 pitchfork you were talking about?

19 A. Yes.

20 Q. Did he have any other weapon other  
21 than that foot long, alleged foot long  
22 pitchfork?

23 A. I don't recall.

24 Q. Did anybody tell you he had any  
25 other weapon?

1 LANDI

2 A. Can I look at the papers?

3 Q. Yes, please.

4 A. Can you repeat the question?

5 Q. Did Police Officer Costa or any  
6 other police officer at the scene tell you that  
7 when they searched Mr. Gray they found any  
8 other weapon, other than the dagger or foot  
9 long pitchfork that you refer to?

10 A. I don't remember.

11 Q. When you saw Mr. Gray for the  
12 first time he was handcuffed, was he handcuffed  
13 with his hands behind his back?

14 A. Yes.

15 Q. Did you notice if he had any  
16 bruises on his face, or anywhere on his body?

17 A. I couldn't tell.

18 Q. Did you make any observation as to  
19 the condition of his clothing?

20 A. No.

21 Q. Did anybody tell you, any of the  
22 police officers at the scene tell you how they  
23 managed to handcuff Mr. Gray?

24 A. Police Officer Costa just said  
25 that he struggled with him.

1 LANDI

2 Q. That he struggled?

3 A. Yes.

4 Q. With who?

5 A. Mr. Gray.

6 Q. That Police Officer Costa had  
7 struggled with Mr. Gray?

8 A. Yes.

9 Q. Did he say what that struggle  
10 entailed?

11 A. No.

12 Q. Did any other police officer tell  
13 you about the alleged struggle between Police  
14 Officer Costa and Mr. Gray?

15 A. No.

16 Q. Did anybody tell you that Mr. Gray  
17 had to be put face down on the ground in order  
18 to be handcuffed?

19 A. No.

20 Q. Did anybody tell you that Mr. Gray  
21 struck somebody at the scene?

22 A. I don't recall.

23 Q. Did anybody tell you that Mr.  
24 Gray kicked anybody at the scene?

25 A. I don't recall.

1 LANDI

2 Q. Did anybody tell you that Mr. Gray  
3 had kneed anybody at the scene?

4 A. I can't recall.

5 Q. Did anybody tell you Mr. Gray  
6 pushed anybody at the scene?

7 A. No.

8 Q. Did anybody tell you that Mr. Gray  
9 shoved anybody at the scene?

10 A. No.

11 Q. Did anyone tell you that Mr. Gray  
12 used abusive language to anyone at the scene?

13 A. I don't recall.

14 Q. Did anybody tell you Mr. Gray had  
15 shouted at anybody?

16 A. I don't recall.

17 Q. Did anybody tell you that Mr. Gray  
18 had assaulted anybody?

19 A. Can I like try clarifying that  
20 with you?

21 Q. Yes. Did he hit anybody?

22 A. Officer Costa said he came at him  
23 with the dagger out.

24 Q. Other than that?

25 A. No.

1 LANDI

2 Q. But there was no physical, actual  
3 physical assault by Mr. Gray on Officer Costa,  
4 except the alleged showing of this dagger,  
5 correct?

6 A. Not that I am aware of.

7 Q. Were the police officers at the  
8 scene equipped with radios?

9 A. Yes.

10 Q. All the police officers at the  
11 scene had radios?

12 A. I don't know.

13 Q. Can you describe the radios, what  
14 they look like?

15 A. Approximately 10 inches by 4  
16 inches, black, plastic.

17 Q. How much do they weigh, about?

18 A. Approximately, in my opinion I  
19 would say a pound and a half.

20 Q. Did any police officer tell you  
21 that in order to handcuff Mr. Gray that they  
22 had to strike him?

23 A. I don't recall.

24 Q. Did any police officer tell you  
25 that in order to handcuff Mr. Gray that they

1 LANDI

2 had to kick him?

3 A. I don't recall.

4 Q. Did any police officer tell you  
5 that in the process of handcuffing Mr. Gray  
6 that they had kneed him?

7 Do you know what I mean by kneed  
8 him?

9 A. Yes.

10 Q. Put a knee in the back?

11 A. I understand what you mean. I  
12 don't recall.

13 Q. Did any police officer tell you in  
14 order to handcuff Mr. Gray they had to push or  
15 shove him?

16 A. Officer Costa said he struggled  
17 with him.

18 Q. Did he tell you what the struggle  
19 entailed?

20 A. No.

21 Q. Did he say he was the only police  
22 officer that had to have a physical struggle  
23 with him?

24 A. He didn't say anything about that.

25 Q. Did any of the other police

1 LANDI

2 officers say they were involved in the physical  
3 struggle?

4 A. No. No one relayed anything to me.

5 Q. Did Officer Costa tell you that in  
6 order to handcuff Mr. Gray he had to get on top  
7 of him?

8 A. I don't recall.

9 Q. Nobody told you that they had  
10 struck Mr. Gray with a radio in the course of  
11 handcuffing and scuffle?

12 A. No.

13 Q. No one told you they punched him  
14 during the course of the scuffle?

15 A. I don't recall.

16 Q. Were any police officers injured  
17 during the course of the arrest and handcuffing  
18 of Mr. Gray?

19 A. I don't recall.

20 Q. Were you present when anyone told  
21 Mr. Gray he was under arrest?

22 A. No.

23 Q. Did anybody tell you they told Mr.  
24 Gray he was under arrest?

25 A. Police Officer Costa.

1 LANDI

2 Q. What was he under arrest for?

3 A. For assaulting the complainant in  
4 the case. Do you want me to look up the name?

5 Q. You don't have to. That's the  
6 complainant that appears on the complaint form?

7 A. Yes.

8 Q. Do you know when the plain clothes  
9 officers finally identified themselves as  
10 police officers?

11 A. No, I don't know.

12 Q. Do you know whether it was before  
13 or after they handcuffed Mr. Gray?

14 A. I wouldn't know.

15 Q. Was Mr. Gray taken to the 88  
16 Precinct?

17 A. Yes.

18 Q. At the 88 Precinct was he  
19 handcuffed again -- was he searched again?

20 A. I don't know.

21 Q. You didn't search him?

22 A. No.

23 Q. But you were the arresting  
24 officer?

25 A. Yes.

1 LANDI

2 Q. How did you become the arresting  
3 officer?

4 A. It was my radio run originally, I  
5 put over canvas description, they just  
6 apprehend him. It was my job. I had  
7 complainant, I became the arresting officer,  
8 that's how it usually goes.

9 Q. Do you know if anyone witnessed  
10 the alleged assault by Mr. Gray of the  
11 complainant?

12 A. No, I don't believe so because I  
13 don't have anything on paper for a witness.

14 Q. Was the complainant examined to  
15 see if he had any marks or anything?

16 A. Myself, yes.

17 Q. What did you find?

18 A. Let me look.

19 Q. Tell me what you are looking at?

20 A. This is going to be the arrest  
21 report.

22 MR. KLABEN: Plaintiff's Exhibit

23 5.

24 A. He had a welt on the left side of  
25 his face.

1 LANDI

2 Q. When you say, welt, what do you  
3 mean?

4 A. Contusion of skin redness in  
5 color. I don't know how you want me to  
6 describe it.

7 Q. How large was that, about?

8 A. Approximately 2 and a half, 3  
9 inches.

10 Q. Did the complainant tell you how  
11 he got this welt?

12 A. Yes.

13 Q. How did he say he got it?

14 A. He stated that Defendant hit him  
15 in the face with the metal part of a dog leash.

16 Q. When Mr. Gray was searched did he  
17 have a dog leash?

18 A. I don't know.

19 Q. In any invoice is there a dog  
20 leash?

21 A. No, not on the invoices.

22 Q. Was Mr. Gray with anybody when you  
23 met him?

24 A. I don't know, I am not the one  
25 that stopped him on the street.

1 LANDI

2 Q. When you met him was he with  
3 anyone?

4 A. Just the police officers that had  
5 him stopped.

6 Q. Did any of the police officers, or  
7 Officer Costa tell you he was with anyone at  
8 the time of this alleged assault on the  
9 complainant?

10 A. No, he didn't say anything.

11 Q. Did the complainant require any  
12 type of medical care?

13 A. Yes.

14 Q. What type of medical care did the  
15 complainant --

16 A. Sorry, he refused medical  
17 attention.

18 Q. Did Mr. Gray offer any resistance  
19 to you?

20 A. I never came in contact with him.

21 Q. Who took him to the 88 Precinct?

22 A. I don't know.

23 Q. Did Mr. Gray make any complaints  
24 of pain to you?

25 A. No.

1 LANDI

2 Q. But he was taken to the 88

3 Precinct?

4 A. Yes.

5 Q. Did you follow him to the 88

6 Precinct?

7 A. No.

8 Q. As arresting officer did you have

9 to fill out paperwork at the 88?

10 A. The paperwork that you see here

11 (indicating).

12 Q. Right?

13 A. Yes.

14 Q. So you did go to the 88 Precinct?

15 A. Yes.

16 Q. When you went to the 88 Precinct,

17 other than filling out the complaint and

18 arrest, did you do anything else, the arrest

19 paper, did you do anything else?

20 A. The vouchers, his property was

21 left on the desk, he was locked in the back in

22 the cells already. I started the arrest

23 report. The complaint report, vouchers.

24 Q. Did you check to see if there were

25 any outstanding warrants?

1 LANDI

2 A. I don't recall.

3 Q. Was he fingerprinted?

4 A. Not by me. At the time we went to  
5 fingerprint him they informed me he just went  
6 to the hospital.

7 Q. Who was the desk sergeant that  
8 night?

9 A. Can I ask him something? I am not  
10 a hundred percent. I could see Sergeant  
11 Cumacho because he is on the paperwork.

12 MR. KLABEN: If he signed it on  
13 the paperwork.

14 MR. OSTROW: Just say that.

15 THE WITNESS: Sergeant Cumacho  
16 signed it on paper.

17 Q. Is that C-o-m-a-c-h-o?

18 A. C- u.

19 Q. Do you know his first name?

20 A. Jose.

21 Q. Is he still at the 88?

22 A. No.

23 Q. Do you know where he is?

24 A. No, I am not sure.

25 Q. Do you know if he was

1 LANDI

2 photographed, Mr. Gray?

3 A. I don't know.

4 Q. Well, was it policy if someone was  
5 transferred to the hospital they would be  
6 photographed and a form would be filled out?

7 A. It's not always photograph, but a  
8 medical treatment form would be filled out.

9 Q. The physical papers that you see  
10 before you, is there a medical treatment form?

11 A. No.

12 MR. OSTROW: I request we be  
13 provided the medical treatment form.

14 MR. KLABEN: Please make all  
15 requests in writing. Taken under  
16 advisement.

17 Q. Do you know what hospital he went  
18 to?

19 A. Let me look at the notes real  
20 quick. No, I don't.

21 Q. Is there anything in the records  
22 that you have before you that state as to why  
23 he had to be taken to the hospital?

24 A. Nothing in the records.

25 Q. Would there normally be something,

1 LANDI

2 a record at the precinct that would indicate  
3 why an arrestee was taken to the hospital?

4 A. I am not sure.

5 MR. OSTROW: I request a search be  
6 done for any records indicating why Mr.  
7 Gray was taken to the hospital from the 88  
8 Precinct, that we be provided a copy, in  
9 addition to the medical treatment form.

10 MR. KLABEN: Taken under  
11 advisement.

12 THE WITNESS: The medical  
13 treatment form should have you the reason.

14 Q. And also should have the  
15 photograph of the arrestee?

16 A. I don't know.

17 Q. Were you ever told that he had  
18 been admitted to the hospital?

19 A. I don't recall.

20 Q. Were you ever told what injuries  
21 he suffered?

22 A. Yes.

23 Q. What injuries were you told?

24 A. Punctured lung.

25 Q. Anything else?

1 LANDI

2 A. Cracked rib.

3 Q. Who told you this?

4 A. The doctors.

5 Q. Did you escort him to the  
6 hospital?

7 A. No, I did not.

8 Q. When you say, doctors, what  
9 doctors are you referring to?

10 A. Doctors at the hospital.

11 Q. At one point you were watching him  
12 at the hospital?

13 A. Yes.

14 Q. When was that?

15 A. Within the next two days, I am not  
16 sure if exactly day after or day after that.

17 Q. He would have been in the hospital  
18 as far as you know at least two days?

19 A. Yes.

20 Q. Upon his discharge from the  
21 hospital was he returned to the 88 Precinct?

22 A. I don't know.

23 Q. Do you know how long he was in  
24 police or Department of Corrections' custody?

25 A. No.

1 LANDI

2 Q. Did you ever go to court with  
3 regard to this case?

4 A. I don't remember.

5 Q. Do you know what happened to the  
6 charges in this case?

7 A. No.

8 Q. Do you know what the charges were,  
9 all the charges?

10 A. That I charge him with, or the DA?

11 Q. Whoever charged him?

12 A. What I charged him with, yes.

13 Q. Can you tell me?

14 A. Assault with intent to cause  
15 physical injuries with a weapon.

16 Q. Assault with intent to cause?

17 A. Physical injury with a weapon.

18 Q. This was based upon the statement  
19 of the complainant?

20 A. Correct.

21 Q. What else?

22 A. Resisting arrest.

23 Q. This was based upon what Police  
24 Officer Costa told you, correct?

25 A. Yes.

1 LANDI

2 Q. What else was he charged with?

3 A. Menacing with a weapon.

4 Q. What is the basis for that charge?

5 A. The CV statements.

6 Q. The complainant's statements?

7 A. Yes.

8 Q. What else was he charged with?

9 A. Criminal possession of a weapon in  
10 the 4th with intent to use.

11 Q. This was based on what?

12 A. Based on the complainant's  
13 statements, and what Officer Costa said he  
14 found on him.

15 Q. The criminal possession weapon is  
16 that foot long three prong dagger, correct?

17 A. Yes.

18 Q. That does not show up on any of  
19 the invoices?

20 A. Not the one in front of me, no.

21 Q. Are there any other invoices that  
22 are not here that should be here?

23 A. I believe there is but I don't  
24 have my memo book with me, it would be listed  
25 there with the correct numbers.

1 LANDI

2 Q. Did you ever give a statement  
3 regarding the events of April 17th 2014  
4 involving Mr. Gray to anybody from the New York  
5 City Internal Affairs Bureau, or anybody from  
6 CCRB?

7 A. No.

8 Q. Do you know if anybody from the 88  
9 Precinct had to give a statement to anybody in  
10 the Internal Affairs Bureau or CCRB, regarding  
11 the events of April 17th 2014, involving Mr.  
12 Gray?

13 A. I don't know.

14 Q. Nobody told you they did, correct?

15 A. No.

16 Q. Can you just read the memo book  
17 entries that are in your handwriting?

18 A. Yes. Thursday 4/17/14 tour is  
19 1500 by 2335. At 2008 10-52, firearm, Myrtle  
20 and Washington.

21 Q. That's the firearm that you were  
22 talking about, the 911 call?

23 A. Correct. At 2008 I am 84, which  
24 is I arrived. 2010 canvas for perp with CV.

25 2022 one stop by claim positive ID

1 LANDI

2 Myrtle and Emerson. 2033 --

3 Q. I want to ask you one thing. You  
4 were talking to the claimant?

5 A. Yes.

6 Q. Did he tell you that he'd known  
7 Mr. Gray before.

8 A. Yes. 2033 one under, Lieutenant  
9 Davis on scene. 205 -- I'm not sure if it's  
10 2050 or 2055, back at 88.

11 2209 transported to hospital, PO  
12 Flores.

13 Q. Who is Flores now?

14 A. That would be the officer that  
15 went with him to the hospital, officer to  
16 escort him.

17 Q. Thank you.

18 A. 2215 paperwork sign and completed.  
19 2226 complaint number, 200014-88-001486.

20 2249 K number, 14634302-Z.

21 Q. That's the arrest sheet?

22 A. Yes, that's arrest number. At the  
23 same time Defendant Gray, Michael, 10/27/69,  
24 193 Clinton Ave, 10 David.

25 2347 fax paperwork, 2349, \$120.00

1 LANDI

2 U.S. currency, four 20's four 10's. Bag number  
3 34364192, invoice number 3000360527,  
4 safekeeping.

5 At 0009 invoice number,  
6 3000360534. Here, it mentions the fork, dagger  
7 as evidence. 0033 --

8 Q. I want to stop you, it says metal  
9 fork dagger as evidence?

10 A. Yes.

11 Q. Is there any indication what that  
12 notation means?

13 A. Repeat that?

14 Q. What does that notation mean?

15 A. That I voucher that metal fork  
16 dagger for evidence of the crime.

17 Q. What happened to it, when you say  
18 voucher, that means you filled out a voucher  
19 form?

20 A. Filled out, put in a voucher bag  
21 completed in system and then put downstairs,  
22 the property clerk signs off by agent.

23 Q. Do you have any indication, any  
24 paper of the agent that signed off on it?

25 A. No.

1 LANDI

2 Q. Go ahead?

3 A. 0033 relation to time for ECRIB  
4 (phonetic) 0700 start time. 0125 bank drop at  
5 Chase and drop off medical treatment off at  
6 Woodhull. 0135, EOT.

7 Q. End of tour?

8 A. End of tour.

9 MR. OSTROW: Thank you, officer.

10 I have no further questions.

11 (Whereupon, at 11:35 a.m. the  
12 examination of this witness  
13 was concluded.)

14

15

\_\_\_\_\_  
MICHAEL LANDI

16

17

18 Subscribed and sworn to before me  
19 this day of 2017.

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NOTARY PUBLIC

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## EXHIBITS

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## C E R T I F I C A T E

STATE OF NEW YORK       )  
                                  :    SS.:  
COUNTY OF QUEENS       )

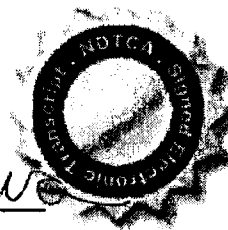
I, NANCY NASCA, a Notary Public for and  
within the State of New York, do hereby  
certify:

That the witness whose examination is  
hereinbefore set forth was duly sworn and that  
such examination is a true record of the  
testimony given by that witness.

I further certify that I am not related  
to any of the parties to this action by blood  
or by marriage and that I am in no way  
interested in the outcome of this matter.

IN WITNESS WHEREOF, I have hereunto set  
my hand this 17th day of January 2017.

  
NANCY NASCA



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| 56:19             | 2341/15 1:8      | 762 9:18         |                 |
| 16 5:5 61:10      | 2347 57:25       | 7th 61:12        |                 |
| 1717 5:5          | 2349 57:25       | <b>8</b>         |                 |
| 17th 7:2 10:14    | 25 61:6          | 8 6:8 35:24 36:2 |                 |
| 11:21 13:10       | 27 61:10         | 60:18            |                 |
| 19:5,13,17        | 28 60:20         | 8:00 23:21       |                 |
| 20:4,20 23:21     | 2820 13:24       | 8:30 22:24 23:21 |                 |
| 29:2 31:4 56:3    | 29 1:13          | 31:6 61:12       |                 |
| 56:11 62:20       | 298 9:12         | 84 56:23         |                 |
| 193 57:24         | <b>3</b>         | 88 9:12,22 10:2  |                 |
| <b>2</b>          | 3 6:8 9:24 47:8  | 10:24 16:10,12   |                 |
| 2 6:8 14:10 47:8  | 60:11,13,15      | 16:14,17 18:6    |                 |
| 60:12,12          | 61:12            | 19:6,15 23:9     |                 |
| 20's 58:2         | 3000360527       | 26:25 27:10      |                 |
| 2000 25:24 26:3   | 58:3             | 28:3 29:13,14    |                 |
| 200014-88-001...  | 3000360534       | 29:15,21,21,22   |                 |
| 57:19             | 58:6             | 29:23 30:20      |                 |
| 2008 56:19,23     | 31 2:15 11:9     | 32:10 37:4       |                 |
| 2010 56:24        | 61:12,13         | 45:15,18 48:21   |                 |
| 2011 13:17,17     | 3115 2:8,23 3:12 | 49:2,5,9,14,16   |                 |
| 2014 7:2 10:14    | 3116 4:15        | 50:21 52:7       |                 |
| 11:21 13:10       | 3117 4:15        | 53:21 56:8       |                 |
| 19:5,13,17        | 34364192 58:3    | 57:10            |                 |
| 20:4,20 23:22     | 35 22:22         | 8th 5:9          |                 |
| 29:2 31:5 56:3    | 350 1:12 5:9     |                  |                 |
| 56:11 61:12       | <b>4</b>         |                  |                 |
| 2016 1:13         | 4 6:8 42:15      |                  |                 |

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as yet  
unidentified,

Defendants.  
-----X

**NOTICE OF DEPOSITION**

Index No. 2341/2015

TO: Zachary W. Carter  
350 Jay Street  
Brooklyn, NY 11201

**PLEASE TAKE NOTICE**, that pursuant to CPLR Article 31 the undersigned hereby demands to take the deposition of **Police Officer Kosta**, who is believed to have knowledge concerning the relevant facts and circumstances in connection with incident that occurred on April 17, 2014 at approximately 8:30P.M., at or about the intersection of Myrtle Avenue and Emerson Place, County of Kings, City and State of New York.

**THE SAID DEPOSITION** will take place at the offices of attorneys for the defendants located at Corporation Counsel's office located at 350 Jay Street, Brooklyn, NY 11201, at **2:00 o'clock** in the afternoon on **April 10, 2017**.

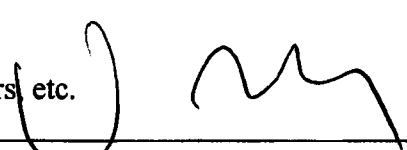
The said persons to be examined are required to produce at such examination all memoranda, reports, diagrams, measurements, books, notes, notations, records, memoranda, supply records, inventory records, accident reports, daily logs, daily work records, photographs,

documents, in the line of duty reports, memo book entries, correspondence, maps, charts, diagrams and other writings, papers and other materials in the possession of this defendant and relevant to the issues herein.

In the event said individual cannot appear to be examined in compliance with this notice, please advise us immediately so that arrangements can be made for a time and place agreeable to all parties.

Dated: Brooklyn, NY  
February 1, 2017

Yours, etc.



---

ROBERT MIJUCA, ESQ.  
RUBENSTEIN & RYNECKI  
Attorneys for Plaintiff  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718) 522-1020

**AFFIDAVIT OF SERVICE**

STATE OF NEW YORK, COUNTY OF NEW YORK ss:

Catina Imes being duly sworn, deposes and says:

I am over 18 years of age, I am not a party to the action, and I reside in County of Queens in the State of New York.

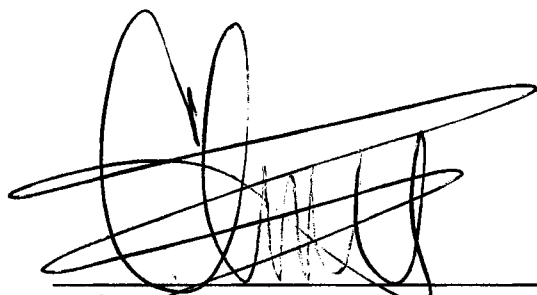
I served a true copy of the Annexed

**NOTICE OF DEPOSITION**

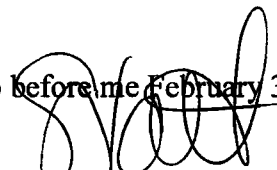
On February 3, 2017

By mailing the same in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service within the State of New York, addressed to the last known address of the addressee as indicated below:

Zachary W. Carter, Esq.  
Attorneys for Defendants  
The City of New York, The  
New York City Police Department  
& PO Michael Landi  
350 Jay Street, 8<sup>th</sup> Floor  
Brooklyn, New York 11201  
(718)222-2000

  
Catina Imes

Sworn to before me February 3, 2017

  
NOTARY PUBLIC

SUZANNE VALENTINE  
COMMISSIONER OF DEEDS  
No. 4-10081  
Certificate Filed in Kings County  
Commission Expires June 1, 2018

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MICHAEL GRAY,

Plaintiff,

**NOTICE OF DEPOSITION**  
Index No. 2341/2015

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as yet  
unidentified,

Defendants.  
-----X

TO: Zachary W. Carter  
350 Jay Street  
Brooklyn, NY 11201

**PLEASE TAKE NOTICE**, that pursuant to CPLR Article 31 the undersigned hereby demands to take the deposition of **Police Officer Qualis**, who is believed to have knowledge concerning the relevant facts and circumstances in connection with incident that occurred on April 17, 2014 at approximately 8:30P.M., at or about the intersection of Myrtle Avenue and Emerson Place, County of Kings, City and State of New York.

**THE SAID DEPOSITION** will take place at the offices of attorneys for the defendants located at Corporation Counsel's office located at 350 Jay Street, Brooklyn, NY 11201, at **3:00 o'clock** in the afternoon on **April 10, 2017**.

The said persons to be examined are required to produce at such examination all memoranda, reports, diagrams, measurements, books, notes, notations, records, memoranda, supply records, inventory records, accident reports, daily logs, daily work records, photographs,

documents, in the line of duty reports, memo book entries, correspondence, maps, charts, diagrams and other writings, papers and other materials in the possession of this defendant and relevant to the issues herein.

In the event said individual cannot appear to be examined in compliance with this notice, please advise us immediately so that arrangements can be made for a time and place agreeable to all parties.

Dated: Brooklyn, NY  
February 1, 2017

Yours, etc.



---

ROBERT MIJUCA, ESQ.  
RUBENSTEIN & RYNECKI  
Attorneys for Plaintiff  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718) 522-1020

**AFFIDAVIT OF SERVICE**

STATE OF NEW YORK, COUNTY OF NEW YORK ss:

Catina Imes being duly sworn, deposes and says:

I am over 18 years of age, I am not a party to the action, and I reside in County of Queens in the State of New York.

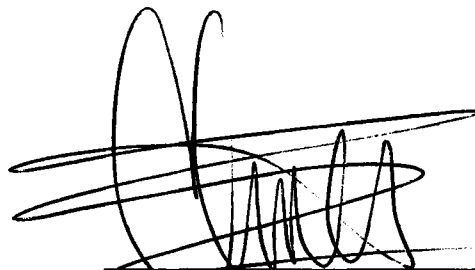
I served a true copy of the Annexed

**NOTICE OF DEPOSITION**

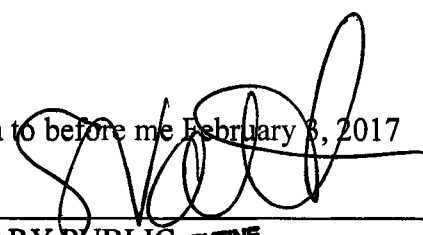
On February 3, 2017

By mailing the same in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service within the State of New York, addressed to the last known address of the addressee as indicated below:

Zachary W. Carter, Esq.  
Attorneys for Defendants  
The City of New York, The  
New York City Police Department  
& PO Michael Landi  
350 Jay Street, 8<sup>th</sup> Floor  
Brooklyn, New York 11201  
(718)222-2000

  
Catina Imes

Sworn to before me February 8, 2017

  
\_\_\_\_\_  
NOTARY PUBLIC  
SUZANNE VALENTINE  
COMMISSIONER OF DEEDS  
No. 4-10061  
Certificate Filed in Kings County  
Commission Expires June 1, 2018

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XIX

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**FSC**



EH

2015-008455

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 11 day of April 2017

P R E S E N T

Hon.

*Podace by Genovesi*  
Justice

Michael Gray

Plaintiff(s)

Cal. No. 21

Index No. 2023-11/2015

- against -

The City of New York, NYPD, P.O. Michael Landi,  
and John Does - officers as yet unidentified  
Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC resolved as follows:

- 1) City to provide the memobook entries for the subject incident of P.O. Landi and P.O. Landi's IAB statements with regards to Plaintiff's arrest (as testified to at his EBT). The City will also provide Plaintiff's medical treatment form, All within 60 days, thus resolving Plaintiff's Post EBT demands dated 2/1/17.
- 2) City to produce P.O. Qualis for EBT on 8/7/17 at 10am at 350 Jay St., 8th fl., Brooklyn, NY (subject to officer's availability). Plaintiff reserves right to demand further availability of EBT of P.O. Kosta.

For Clerks use only

MG

MD

Motion Seq. #

3) NOI extended to 10/20/17

ENTER

EIV-rev 11-04

*J.S. Genovesi*  
J.S.C.

*Kausen*  
*Landi*

**AFFIDAVIT OF SERVICE**

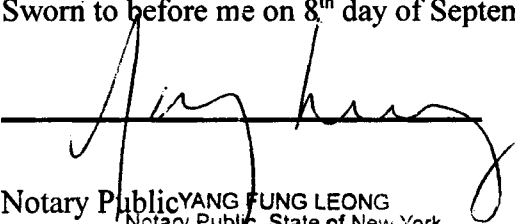
STATE OF NEW YORK, COUNTY OF KINGS ss.:

**Christopher Vitoratos** being duly sworn, deposes and says:

I am over 13 years of age, I am not a party to the action, and I reside in Queens County in the State of New York.

On September 8, 2017 I served a true copy of the annexed **NOTICE OF MOTION** by **REGULAR MAIL** the same in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service within the State of New York, addressed to the last known address of the addressee as indicated below:

Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201

  
\_\_\_\_\_  
**Christopher Vitoratos**Sworn to before me on 8<sup>th</sup> day of September, 2017  
\_\_\_\_\_  
Notary Public **YANG FUNG LEONG**  
Notary Public, State of New York  
No. 01LE6136366  
Qualified in Kings County  
Commission Expires November 7, 2019 

Index No. 2341 Year 2015

NOTICE OF ENTRY

PLEASE take notice that the within is a (certified) true copy of a duly entered in the office of the clerk of the within named court on

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address  
16 COURT ST.  
BROOKLYN, N.Y. 11241

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

MICHAEL GRAY,  
Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,  
POLICE OFFICER MICHAEL LANDI and JOHN DOES-Police Officers as yet  
unidentified,  
Defendants.

To

Attorney(s) for

NOTICE OF MOTION

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on

at M.

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address  
16 COURT ST.  
BROOKLYN, N.Y. 11241

Signature (Rule 130-1.1-a)

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address, Telephone  
16 COURT ST.  
BROOKLYN, N.Y. 11241  
(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated

To

Attorney(s) for

Attorney(s) for

RUBENSTEIN & RYNECKI ESQS.

© 1995 BlumbergExcelsior, Inc.

STATE OF NEW YORK, COUNTY OF

SS.:

I, the undersigned, an attorney admitted to practice in the courts of New York State,

Check Applicable Box

☐ Certification By Attorney

certify that the within

☐ Attorney's Affirmation

state that I am

the attorney(s) of record for

action; I have read the foregoing

the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by

• • • • •

in the within

and know the contents thereof;

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated:

.....  
The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF

SS.:

I, the undersigned, being duly sworn, depose and say: I am

Check Applicable Box

☐ Individual Verification

in the action; I have read the foregoing

☐ Corporate Verification

the of a

corporation and a party in the within action; I have read the foregoing

and know the contents thereof; the same is true to my own knowledge, except

as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.

and know the contents thereof; and the same is true to my own knowledge,

except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. This

verification is made by me because the above party is a corporation and I am an officer thereof.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Sworn to before me on

.....  
The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF

SS.:

(If more than one box is check — indicate after names type of service used.)

I, the undersigned, being sworn, say: I am not a party to the action, am over 18 years of age and reside at

On I served the within

Check Applicable Box

☐ Service By Mail

by mailing a copy to each of the following persons at the last known address set forth after each name below.

☐ Personal Service on Individual

by delivering a true copy of each personally to each person named below at the address indicated. I knew each person served to be the person mentioned and described in said papers as *a party therein*:

☐ Service by Electronic Means

by transmitting a copy to the following persons by ☐ FAX at the telephone number set forth after each name below ☐ E-MAIL at the E-Mail address set forth after each name below, which was designated by the attorney for such purpose, and by mailing a copy to the address set forth after each name.

☐ Overnight Delivery Service

by dispatching a copy by overnight delivery to each of the following persons at the last known address set forth after each name below.

Sworn to before me on

.....  
The name signed must be printed beneath

2018 APR -2 AM 9:49

AB 2015-008455

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 27 day of March 2018

P R E S E N T :

Hon. Boddie Martin SCHNEIER  
Justice  
HON. MARTIN SCHNEIER, JHO

Michael Gray

Plaintiff(s)

Cal. No. 22

Index No. 2341/2015

- against -

The City of New York et al.

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

① EBT of Sgt. Felstein ~~meeting~~ to be held on 7/10/18 at 10AM at 350 Jay St., 8<sup>th</sup> Fl., Brooklyn, NY 11201.

② TT's Post-EBT demands dated 10/30/17 ~~is~~ are resolved as follows:

For Clerks use only

MG

MD

Motion Seq. #

~~noted for the~~ City to search for and provide, if found, within 45 days:  
a) voucher for pitchfork that was allegedly recovered from TT ENTER upon subject arrest

EJV-rev 11-04

b) roll call for 88<sup>th</sup> Precinct on date of subject incident

c) CCRB and IAB for subject incident

③ Further CC on 12/18/18

④ NOI extended to 2/22/19

*[Signature]*  
for TT

*[Signature]*  
CityLand

KINGS COUNTY CLERK  
FILED

MG 15-008455

2018 DEC 28 AM 9:37

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 18 day of December 2018

P R E S E N T :

Hon. MARTIN SCHNEIER  
JusticeMichael Gray

Plaintiff(s)

Cal. No. 23  
Index No. 2341/15

- against -

The City of New York

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

- 1) City to provide subject IAB within 45 days as per the 3/27/18 court order. City provided CCRB as per 3/27/18 court order.

2) NOI: 4/5/19

For Clerks use only

MG

MD

Motion Seq. #

3) CC: [Signature]

E N T E R

4) It reserves A to serve further discovery demands

EJV-rev 11-04

J.S.C.

HON. MARTIN SCHNEIER, JHO

Rukenstein-Lynette  
by K. [Signature]

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as yet  
unidentified,

Defendants.  
-----X

**NOTICE OF MOTION**

Index No.: 2341/2015

2019 APR -2 PM 3:41

KINGS COUNTY CLERK  
FILED

**MOTION BY:**

Rubenstein & Rynecki, Esqs., attorneys for the plaintiffs

**DATE, TIME & PLACE  
OF HEARING:**

April ~~30~~ 2019 9:30 am at the Supreme Court, Kings  
County, 360 Adams Street, Brooklyn, New York, Central  
Compliance Part.

**RELIEF REQUESTED:**

An Order compelling the defendants to comply with the  
court's Order dated December 18, 2018 and respond to  
plaintiff's Notice of Discovery and Inspection dated  
December 19, 2018, 2018; extending plaintiffs' time to file  
a Note of Issue on a date certain and for such other and  
further relief as the Court deems just and proper.

**SUPPORTING PAPERS:**

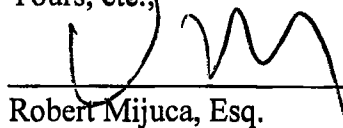
Affirmations of Robert Mijuca, Esq., dated April 2, 2019  
with exhibits annexed thereto.

**ANSWERING AFFIDAVITS:**

To be served seven (7) days prior to the return date of this  
motion.

Dated: Brooklyn, New York  
April 2, 2019

Yours, etc.,



Robert Mijuca, Esq.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorney for Plaintiff  
16 Court Street, Suite 1717  
Brooklyn, New York 11241

**KINGS COUNTY  
SUPREME COURT  
MOTION SUPPORT  
APPROVED  
LTE**

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 18<sup>th</sup> day of May 2019

P R E S E N T :

Hon.

*Schneier*

Justice

*Michael Gray*

Plaintiff(s)

Cal. No.

Index No.

*9*  
*2341/15*

- against -

*The City of New York, The New York City Police Dept., Police Officer Michael Lundy et al*

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

*Plaintiff's motion to compel is described as follows:*

- ① As City is still awaiting IAB Records response, City to provide subject IAB within 45 days.*
- ② NOI extended to 9/27/19.*

For Clerks use only

MG

MD

Motion Seq. # *3**Further as on:*

ENTER

*HON. MARTIN SCHNEIER, JHA*

2019 MAY 29 AM 9:33

KINGS COUNTY CLERK  
FILED

EJV-rev 11-04

*City**Rubenstein Lundy  
by [signature]*

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

MICHAEL GRAY, ✓

Plaintiff,

**NOTICE OF MOTION**

Index No.: 2341/2015

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as yet  
unidentified,

Defendants. ✓

**MOTION BY:**

Rubenstein & Rynecki, Esqs., attorneys for the plaintiffs

**DATE, TIME & PLACE  
OF HEARING:**

April ~~30~~ 2019 9:30 am at the Supreme Court, Kings  
County, 360 Adams Street, Brooklyn, New York, Central  
Compliance Part.

**RELIEF REQUESTED:**

An Order compelling the defendants to comply with the  
court's Order dated December 18, 2018 and respond to  
plaintiff's Notice of Discovery and Inspection dated  
December 19, 2018, 2018; extending plaintiffs' time to file  
a Note of Issue on a date certain and for such other and  
further relief as the Court deems just and proper.

**SUPPORTING PAPERS:**

Affirmations of Robert Mijuca, Esq., dated April 2, 2019  
with exhibits annexed thereto.

**ANSWERING AFFIDAVITS:**

To be served seven (7) days prior to the return date of this  
motion.

Dated: Brooklyn, New York  
April 2, 2019

Yours, etc.,

Robert Mijuca, Esq.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorney for Plaintiff  
16 Court Street, Suite 1717  
Brooklyn, New York 11241

KINGS COUNTY  
SUPREME COURT  
MOTION SUPPORT  
APPROVED  
4-2-19

RMD

KINGS COUNTY CLERK  
FEE PD \$ 45.00

(718)522-1020

TO:

Zachary W. Carter

Corporation Counsel

Attorneys for Defendants

350 Jay Street

Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiffs,

-against-

**AFFIRMATION IN SUPPORT**

Index No.: 2341/2015

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER  
MICHAEL LANDI and JOHN AND JANE DOES-Police  
Officers as yet unidentified,

Defendants.

-----X

**ROBERT MIJUCA, ESQ.**, an attorney duly admitted to practice law before the Courts  
of the State of New York, affirms the following under the penalty of perjury:

1. I am a partner with the law firm of Rubenstein & Rynecki, Esqs., attorneys for the plaintiffs herein, and as such, am fully familiar with the facts and circumstances of the within action, based upon the file maintained in my office.
2. This Affirmation is submitted in support of the within Motion seeking an Order compelling defendants to comply with the court's Order dated December 18, 2018 and respond to plaintiff's Notice of Discovery and Inspection dated December 19, 2018, 2018; extending plaintiff's time to the file Note of Issue and for such other and further relief as the Court deems just and proper.
3. The underlying action is an action for serious personal injuries sustained by the plaintiff as a result of a false arrest by police officers that occurred on April 17, 2014.
4. The Defendants were put on notice with the filing of the Notice of Claim on or about May 28, 2014. The action was commenced with the service of a Summons and Complaint on or about February 24, 2015. Issue was joined with the service of Verified Answer and Amended Answer

by the Defendants. Copies of the aforementioned pleadings are annexed hereto as **Exhibit 1**.

5. On August 14, 2018, defendants produced witness Lieutenant Feldshteyn for a deposition. As a result of that deposition, on December 19, 2018, plaintiff's counsel served a Notice for Discovery and Inspection upon defendants requesting numerous discovery items which were unobtainable from Lt. Feldshteyn's deposition. Defendants failed to respond to plaintiff's demand. Annexed hereto as **Exhibit 2** is a copy of the plaintiffs' December 19, 2018 Notice for Discovery and Inspection. Defendants failed to respond to plaintiffs' Notice for Discovery and Inspection.

7. On December 18, 2018, plaintiff and defendants appeared for a conference where the defendants were ordered to provide the subject IAB within forty-five (45) days. A copy of the aforesaid order is annexed hereto as **Exhibit 3**. Defendants failed to comply with the order.

8. Then in order to avoid further unnecessary Motion practice, your Affirmant's paralegal sent the Defendants' counsel a letter dated February 12, 2019, requesting the defendants respond to the aforementioned demand and court order. To date, defendants have failed to respond to the demand and court order. A copy of the aforesaid letter is annexed hereto as **Exhibit 4**.

9. CPLR §3124 provides in part, that if a person fails to respond to or comply with any request notice, interrogatory demand, question or Order under this Article, the party seeking disclosure may move to compel compliance or a response. When a party fails to respond, the proponent of the request may move for an Order pursuant to CPLR §3124 compelling disclosure and/or response. Harowitz v. Camp Cedar Hurst And Town And Country Day School 119 A.D.2d 548.

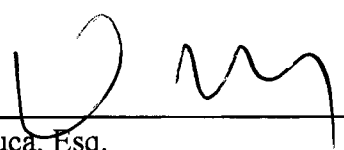
10. The Court has broad discretion in supervising discovery and fashioning just remedies concerning a parties failure to respond to notices. In the matter of the Estate of Florence Cullen 143 A.D.2d 756, Dunnsmore v Paprin 114 A.D. 2d 836.

11. As this discovery remains outstanding, plaintiff is unable to file a Note of Issue. As such, it is respectfully requested that this Court issue an Order to compel defendants to comply with the court's Order dated December 18, 2018 and respond to plaintiff's Notice of Discovery and Inspection dated December 19, 2018, 2018; and extend plaintiff's time to file a Note of Issue, and for such other and further relief as the Court deems just and proper.

**WHEREFORE**, it is respectfully requested that the instant motion be granted in its entirety, and for such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York  
April 2, 2019

Yours, etc.;



---

Robert Mijuca, Esq.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorney for Plaintiff  
16 Court Street, Suite 1717  
Brooklyn, New York 11241  
(718)522-1020

TO:  
Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiffs,

-against-

AFFIRMATION OF GOOD  
FAITH

Index No.: 2341/2015

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as yet  
unidentified,

Defendants.

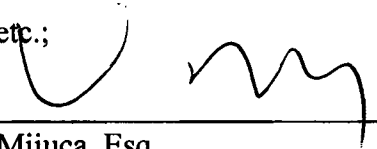
-----X  
**ROBERT MIJUCA, ESQ.**, an attorney admitted to practice before the Courts of thisState affirms the truth of the following under the penalty of perjury and pursuant to the  
provisions of the CPLR.

I am a partner with the law firm of RUBENSTEIN & RYNECKI, ESQS. attorneys for the  
plaintiffs herein and I submit this Affirmation in good faith in order to enlist judicial intervention  
of the Court in the above compelling to comply with the court's Order dated December 18, 2018  
and respond to plaintiff's Notice of Discovery and Inspection dated December 19, 2018, 2018;  
extending plaintiff's time to the file Note of Issue and for such other and further relief as the  
Court deems just and proper.

This discovery is necessary to bring forth all the facts and are in the interest of justice.

**WHEREFORE**, I respectfully pray that the within Affirmation of Good Faith be accepted.Dated: Brooklyn, New York  
April 2, 2019

Yours, etc.;

  
\_\_\_\_\_  
Robert Mijuca, Esq.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorney for Plaintiff

16 Court Street, Suite 1717  
Brooklyn, New York 11241  
(718)522-1020

TO:  
Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201

# EXHIBIT 1

## NOTICE OF CLAIM

-----  
In the Matter of the Claim of

MICHAEL GRAY,

against

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,

and JOHN & JANE DOES-Police Officers as yet unidentified  
-----

## TO: COMPTROLLER OF THE CITY OF NEW YORK

PLEASE TAKE NOTICE that the undersigned claimants hereby make claim and demand against the City of New York, as follows:

## 1. The name and post-office address of each claimant and claimant's attorney is:

RUBENSTEIN &amp; RYNECKI, ESQS.

16 Court Street, Ste. 1717

Brooklyn, New York 11241

MICHAEL GRAY

193 Clinton Avenue, Apartment 10D

Brooklyn, New York 11205

2. The nature of the claim: Assault, Battery, False Arrest, False Imprisonment, Malicious Prosecution, Intentional Infliction of Emotional Distress, Negligent Infliction of Emotional Distress, Outrageous Conduct giving rise to personal injuries, Prima facie tort, Violation of Civil Rights in accordance with 42 USC 1983 in that the claimant MICHAEL GRAY was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a State, caused claimant MICHAEL GRAY to be so deprived and other and further violations of the claimant's rights and privileges secured to him under the Constitutions of the United States of America and the State of New York. Negligence in failing to use such care in the performance of police duties as reasonably prudent and careful police would have used under similar circumstances. Negligence of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT in hiring and retaining persons who were unfit to serve as police officers; in that Respondents THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT its agents, servants and/or employees, failed to exercise reasonable precautions in employing said police officers by failing to properly investigate their background. Negligence of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT in the training and instruction of its police officers by not exercising care in instructing them as to their deportment, behavior and conduct as police officers, especially regarding the abuse of power and use of excessive force while in the field; and as representatives of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, in their training and instruction, more specifically with regard to their training as to probable cause for arrests and use of force. Further, it is claimed that respondent THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT has continued to improperly train and supervise police officers in the field, including the officers herein, which caused claimant to be abused, assaulted and battered on April 17, 2014, as well as the fact that the respondents THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT failed to respond appropriately to past complaints of misconduct, and with respect to the Police, not only by their own Internal Affairs Bureau, but also the Civilian Complaint Review Board, Mollen Commission reports and other public reports. It is further alleged that this incident was the result of consistent racial profiling by the Respondents in the area where this incident occurred.

3. **The time when, the place where and the manner in which the claim arose:** On or about April 17, 2014, a Thursday, at approximately 8:30 PM at or about the intersection of Myrtle Avenue and Emerson Place, County of Kings, City and State of New York, Respondents JOHN & JANE DOES-Police Officers as yet unidentified, multiple plain clothes police officers, who upon information and belief are employees of the Respondents THE CITY OF NEW YORK & THE NEW YORK CITY POLICE DEPARTMENT and assigned to the 88<sup>th</sup> Police Precinct, did, while claimant, was at said location, illegally and without a proper warrant or cause, did approach claimant, falsely arrest and falsely imprison claimant and thereafter assault and batter claimant and harass said claimant both physically and mentally. Respondent Police Officers, did, illegally approach, harass, abuse, said claimant and cause claimant to fear for his safety. Respondent Police Officers did, without probable cause, abuse claimant both physically and mentally. Furthermore, Respondent Police Officers did assault and batter claimant in that claimant was thrown to the ground, beaten with radios and fists, punched, struck with knees was forcefully placed in handcuffs by the Respondent Officers. Claimant was then taken to the 88<sup>th</sup> Police Precinct and placed in a holding cell. Claimant was then transported to Woodhull Medical Center for treatment of his injuries while remaining in police custody. Claimant was admitted to the hospital remaining there until April 20, 2014 when he was returned to the precinct where he remained until being transferred to Kings County Central Booking on at approximately 7:00 PM. Claimant remained at Central Booking until he was arraigned at approximately and thereafter taken to Riker's Island at approximately 2:00 AM on April 21, 2014. Claimant was thereafter taken to Elmhurst General Hospital for treatment of his injuries while remaining in custody and then Bellevue Hospital for further treatment of his injuries while remaining in custody. Claimant was thereafter returned to Riker's Island on April 22, 2014 where he spent the night in the infirmary. Claimant was thereafter released from Riker's Island at approximately 7:00 AM on April 23, 2014. Claimant was issued a baseless criminal charges for which he must defend himself. Upon information and belief it is alleged that there was an investigation into this incident by the Respondents' Internal Affairs Bureau and the Civilian Complaint Review Board. It is further alleged that the Respondent Officers engaged in a conspiracy to cover up their conduct.

4. **The items of damage or injuries claimed are (include dollar amounts):** Claimant sustained serious injuries, the full extent of which are currently unknown, including but not limited to injury to the ribs including multiple fractures, lungs, head and other physical injuries; all with resulting sequellae and other physical injuries, as well mental anguish and other psychological injuries; fear, anxiety, shame, humiliation, indignity; damage to personal property, damage to reputation and credit, loss of earnings capacity and capability, and all damages sustained as a result of the claims enumerated above, and that by reason of the aforesaid, claimant has been damaged in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS. Claimant also requests attorneys' fees as mandated by law under 42 USC 1983 and other relevant law.

**TOTAL AMOUNT CLAIMED FIVE MILLION DOLLARS**  
**(\$5,000,000.00) plus attorneys' fees**

The undersigned claimant(s) therefore present(s) this claim for adjustment and payment. You are hereby notified that unless it is adjusted and paid within the time provided by law from the date of presentation to you, the claimant intends to commence an action on this claim.

Dated: May 28<sup>th</sup>, 2014

  
MICHAEL GRAY

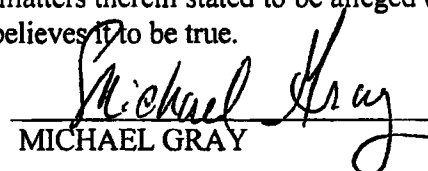
  
RUBENSTEIN & RYNECKI, ESQS.

16 Court St., Ste. 1717  
Brooklyn, New York 11241  
(718) 522-1020

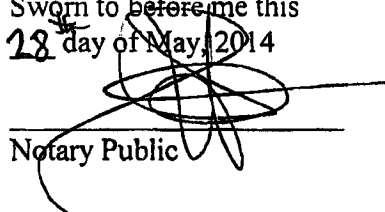
#### INDIVIDUAL VERIFICATION

MICHAEL GRAY

being duly sworn, deposes and says that deponent is the claimant in the within action; that (s)he has read the foregoing Notice of Claim and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes it to be true.

  
MICHAEL GRAY

Sworn to before me this  
28 day of May, 2014

  
Notary Public

SHARON S. KHAN  
Notary Public, State of New York  
No. 01KH6159683  
Qualified in Kings County  
Commission Expires January 22, 2015

-----  
In the Matter of the Claim of  
MICHAEL GRAY,  
against

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,  
POLICE OFFICER MICHAEL LANDI and JOHN & JANE DOES-Police Officers as yet  
unidentified

-----  
NOTICE OF CLAIM AGAINST THE CITY OF NEW YORK  
-----

RUBENSTEIN & RYNECKI, ESQS.

Attorneys for the Claimants

16 Court St., Ste. 1717  
Brooklyn, New York 11241  
(718) 522-1020

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as  
yet unidentified,Defendants.  
-----XIndex # 2341/15  
Date of filing: 2/24/15Plaintiff designates Kings  
County as the place of trialBasis of the venue is the Locus  
of Occurrence**SUMMONS**Plaintiff resides at  
193 Clinton Ave Apt. # 10D  
Brooklyn, New York 11205

County of Kings

**TO THE ABOVE NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

**Defendant's address:**THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007THE NEW YORK CITY POLICE  
DEPARTMENT  
100 Church Street  
New York, New York 10007POLICE OFFICER MICHAEL LANDI  
Tax ID# 950718  
c/o New York City Police Department- 88<sup>th</sup>  
Precinct  
298 Classon Avenue  
Brooklyn, New York 11205**Plaintiff's attorneys:**RUBENSTEIN & RYNECKI, ESQS.  
16 Court Street, Suite 1717  
Brooklyn, New York 11241  
(718)522-1020Dated: Brooklyn, New York  
January 30, 2015KINGS COUNTY CLERK  
RECEIVED  
2015 FEB 24 PM 3:35

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as  
yet unidentified,Defendants.  
-----X

Index No.: 2341/15

COMPLAINT

Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT  
AND BATTERY ON BEHALF OF MICHAEL GRAY**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on May 28, 2014, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H hearing of the plaintiff has not held. A date for said hearing is in the process of being scheduled.

6. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHAEL GRAY, was lawfully present at or about the intersection of Myrtle Avenue and Emerson Place, County of Kings, City and State of New York.

8. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHAEL GRAY, was assaulted and battered by defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, at the aforesaid premises.

9. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, MICHAEL GRAY, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

11. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and

was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT  
HIRING AND RETENTION ON BEHALF OF MICHAEL GRAY**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, MICHAEL GRAY.

16. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE  
ARREST ON BEHALF OF MICHAEL GRAY**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, MICHAEL GRAY.

20. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, MICHAEL GRAY, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE  
IMPRISONMENT ON BEHALF OF MICHAEL GRAY**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND

JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL  
AND NEGLIGENT INFLICTION OF EMOTIONAL  
DISTRESS ON BEHALF OF MICHAEL GRAY**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, MICHAEL GRAY.

30. That as a result of said intentional and negligent acts, the plaintiff, MICHAEL GRAY, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS  
PROSECUTION ON BEHALF OF MICHAEL GRAY**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

34. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

35. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

36. By reason of the foregoing, plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL  
RIGHTS VIOLATION ON BEHALF OF MICHAEL GRAY**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the plaintiff, MICHAEL GRAY, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

39. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, MICHAEL GRAY, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

40. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

41. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

42. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

43. That the defendants' actions were not privileged or immune.

44. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY

POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

45. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR  
PUNITIVE DAMAGES ON BEHALF OF MICHAEL GRAY**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

48. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

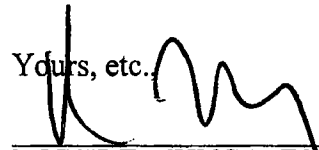
49. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**WHEREFORE**, plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action;

plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York  
January 30, 2015

Yours, etc.

  
ROBERT MIJUCA, ESQ.  
RUBENSTEIN & RYNICKI, ESQS.  
Attorneys for Plaintiff  
MICHAEL GRAY  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718) 522-1020  
File No.:14MG04-17

INDIVIDUAL VERIFICATION

STATE OF NEW YORK )

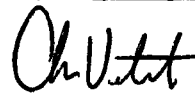
) SS:

COUNTY OF KINGS )

MICHAEL GRAY, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

  
MICHAEL GRAY

Sworn to before me this 19<sup>th</sup>  
day of February, 2015



NOTARY PUBLIC

Christopher Vitoras  
Commissioner of Deeds, City of New York  
CDD number: 4-7212  
New York County  
Expires: April 1, 2016

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MICHAEL GRAY,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI AND JOHN AND JANE DOES-POLICE  
OFFICERS AS YET UNIDENTIFIED,

Defendant(s).  
-----X

**ANSWER**

Index #: 2341/2015

Law Dept. #: 2015-008455

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A

THE NEW YORK CITY POLICE DEPARTMENT, by ZACHARY W. CARTER, Corporation

Counsel, answering the complaint, allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 8-13, 15-17, 19-22, 24-26, 28-31, 33-36, 38-45, 47-49, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to the truth of the allegations set forth in paragraph(s) 1, 6, 7, inclusive.
3. Deny the allegations set forth in paragraph(s) 4, 5, inclusive, except that a notice of a claim was presented, that more than thirty days have elapsed without adjustment thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, inclusive, except that the City of New York is a municipal corporation which maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 14, 18, 23, 27, 32, 37, 46, inclusive, except as otherwise pleaded herein.

**AFFIRMATIVE DEFENSE(S)**

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

10. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. Such statements as were made concerning the plaintiff(s) were privileged as being true, or fair comment upon matters of opinion, and were made in the good faith belief in their truth without malice to person(s) having a like duty or interest therein.

12. Plaintiff(s) did not submit to an examination pursuant to Section 50-h, General Municipal Law, before commencement of this action.

13. Plaintiff(s)' complaint fails to allege a prima facie case against the defendant answering hereby.

**WHEREFORE**, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

ZACHARY W. CARTER  
Corporation Counsel  
100 Church Street  
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MICHAEL GRAY,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI AND JOHN AND JANE DOES-POLICE  
OFFICERS AS YET UNIDENTIFIED,

Defendant(s).  
-----X

**AMENDED ANSWER**

Index #: 2341/2015

Law Dept. #: 2015-008455

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A  
THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MICHAEL LANDI ,  
by ZACHARY W. CARTER, Corporation Counsel, answering the complaint, allege upon  
information and belief:

1. Deny each allegation set forth in paragraph(s) 8-13, 15-17, 19-22, 24-26,  
28-31, 33-36, 38-45, 47-49, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to  
the truth of the allegations set forth in paragraph(s) 1, 7, inclusive.
3. Deny the allegations set forth in paragraph(s) 4, 5, inclusive, except that a  
notice of a claim was presented, that more than thirty days have elapsed without adjustment  
thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, 6, inclusive, except  
that the City of New York is a municipal corporation which employed P. O. MICHAEL LANDI  
and maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 14, 18, 23, 27, 32, 37, 46, inclusive, except as otherwise pleaded herein.

**AFFIRMATIVE DEFENSE(S)**

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

10. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. Such statements as were made concerning the plaintiff(s) were privileged as being true, or fair comment upon matters of opinion, and were made in the good faith belief in their truth without malice to person(s) having a like duty or interest therein.

12. This court lacks jurisdiction over the defendant(s) P. O. MICHAEL LANDI, in that said defendant(s) were not personally served with the summons.

13. Plaintiff(s) did not submit to an examination pursuant to Section 50-h, General Municipal Law, before commencement of this action.

14. Plaintiff(s)' complaint fails to allege a prima facie case against the defendant answering hereby.

**WHEREFORE**, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

**ZACHARY W. CARTER**  
Corporation Counsel  
100 Church Street  
New York, New York 10007

# EXHIBIT 2

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE  
DEPARTMENT, POLICE OFFICER MICHAEL LANDI and  
JOHN AND JANE DOES-Police Officers as yet unidentified,Defendants.  
-----X**NOTICE FOR DISCOVERY  
AND INSPECTION**

Index No.: 2341/2015

City File #: 2015-008455

**PLEASE TAKE NOTICE**, that the plaintiffs, by their attorneys RUBENSTEIN & RYNECKI, hereby make the following demands upon you, returnable at the office of the undersigned within 20 days of receipt herein, as follows:

1. Lieutenant Feldshteyn's memobook.
2. Sergeant Kosta's memobook.
3. Medical transfer form with photograph of plaintiff.
4. Unredacted command log concerning plaintiff's comings and goings on date of incident.

**PLEASE TAKE FURTHER NOTICE**, that the foregoing are continuing demands and that if any of the above items are obtained after the date of this demand, they are to be furnished to the undersigned pursuant to these demands.

**PLEASE TAKE FURTHER NOTICE**, that in the event of your failure to comply, a motion will be made for an Order to Strike your Answer, with costs.

Dated: Brooklyn, New York  
December 19, 2018

Yours, Etc.

A handwritten signature in black ink, appearing to read 'Harris Marks', is written over a horizontal line.

**HARRIS MARKS, ESQ.**

**RUBENSTEIN & RYNECKI, ESQS**

Attorneys for Plaintiff

16 Court Street, Suite 1717

Brooklyn, New York 11241

718-522-1020

TO:

Zachary W. Carter

Corporation Counsel

Attorneys for Defendants

350 Jay Street

Brooklyn, NY 11201

**AFFIDAVIT OF SERVICE**

STATE OF NEW YORK, COUNTY OF KINGS ss:

Alexandra Belenkaya being duly sworn, deposes and says:

I am over 18 years of age, I am not a party to the action, and I reside in County of Queens in the State of New York.

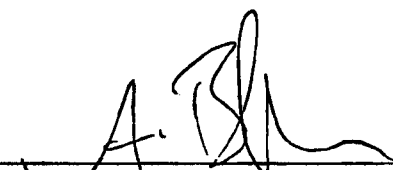
I served a true copy of the Annexed

**NOTICE FOR DISCOVERY AND INSPECTION**

On December 19, 2018

By mailing the same in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service within the State of New York, addressed to the last known address of the addressee as indicated below:

Zachary W. Carter, Esq.  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201

  
\_\_\_\_\_  
Alexandra Belenkaya

Sworn to before me December 19, 2018,

\_\_\_\_\_  
NOTARY PUBLIC

SUZANNE VALENTINE  
COMMISSIONER OF DEEDS  
No. 4-10061  
Certificate Filed in Kings County  
Commission Expires June 1, 2020

# EXHIBIT 3

MG 15-008455

At an I.A.S. Trial Term, Part <sup>T</sup> of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 18 day of December 2018

P R E S E N T :

Hon. MARTIN SCHNEIER  
Justice

Michael Gray

Plaintiff(s)

Cal. No. 23  
Index No. 2341/15

- against -

The City of New York

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

1) City to provide subject IAB within 45 days as per the 3/27/18 court order. City provided CCRB as per 3/27/18 court order.

2) NOI: 4/5/19

For Clerks use only

MG

MD

Motion Seq. #

3) CC: [Signature]

ENTER

4) It reserves it to serve further discovery demands

EJV-rev 11-04

J.S.C.

HON. MARTIN SCHNEIER, JHO

Lukens - Lynock  
by K.V. [Signature]

# EXHIBIT 4

**RUBENSTEIN & RYNECKI**

ATTORNEYS AT LAW  
16 COURT STREET, SUITE 1717  
BROOKLYN, NEW YORK 11241  
Tel. (718)522-1020  
Fax. (718)522-3804

SANFORD A. RUBENSTEIN  
SCOTT E. RYNECKI\*  
ROBERT MIJUCA

HARPER SMITH  
MARC R. BATTIPAGLIA\*  
CHAD RUSSELL  
HARRIS MARKS\*  
ADAM WOLK  
YULIYA GONIKMAN

\* ADMITTED IN NY & NJ

February 12, 2019

Zachary W. Carter  
Corporation Counsel  
350 Jay Street  
Brooklyn, NY 11201

Re: Michael Gray  
D/A: April 17, 2014

Dear Counselor:

Please be advised that we have not yet received your response to the Court Order dated December 18, 2018 or plaintiff's Notice for Discovery and Inspection dated December 19, 2018. Annexed hereto is a courtesy copy of said order and demand.

Please consider this letter a good faith attempt to obtain a response to this outstanding discovery within 20 days before unnecessary motion practice.

Very truly yours,

  
\_\_\_\_\_  
**Christopher Vitoratos**  
Paralegal

MG 15-008455

At an I.A.S. Trial Term, Part <sup>T</sup> of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 18 day of Dec. 2018

P R E S E N T :

Hon. MARTIN SCHNEIER

Justice

Michael Gray

Plaintiff(s)

Cal. No. 23  
Index No. 2341/15

- against -

The City of New York

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

- 1) City to provide subject IAB within 45 days as per the 3/27/18 court order. City provided CCRB as per 3/27/18 court order.

2) NOI: 4/5/19

For Clerks use only

MG

MD

Motion Seq. #

3) CC: \_\_\_\_\_

ENTER

4) It reserves it to serve further  
discovery demands

EJV-rev 11-04

J.S.C.

HON. MARTIN SCHNEIER, JHO

4/kenston-lynn  
by KLV/mjs

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE  
DEPARTMENT, POLICE OFFICER MICHAEL LANDI and  
JOHN AND JANE DOES-Police Officers as yet unidentified,

Defendants.  
-----X

**NOTICE FOR DISCOVERY  
AND INSPECTION**

Index No.: 2341/2015

City File #: 2015-008455

PLEASE TAKE NOTICE, that the plaintiffs, by their attorneys RUBENSTEIN & RYNECKI, hereby make the following demands upon you, returnable at the office of the undersigned within 20 days of receipt herein, as follows:

1. Lieutenant Feldshteyn's memobook.
2. Sergeant Kosta's memobook.
3. Medical transfer form with photograph of plaintiff.
4. Unredacted command log concerning plaintiff's comings and goings on date of incident.

PLEASE TAKE FURTHER NOTICE, that the foregoing are continuing demands and that if any of the above items are obtained after the date of this demand, they are to be furnished to the undersigned pursuant to these demands.

PLEASE TAKE FURTHER NOTICE, that in the event of your failure to comply, a motion will be made for an Order to Strike your Answer, with costs.

Dated: Brooklyn, New York  
December 19, 2018

Yours, Etc.

A handwritten signature in black ink, appearing to read 'Harris Marks', is written over a horizontal line.

**HARRIS MARKS, ESQ.**  
**RUBENSTEIN & RYNECKI, ESQS**  
Attorneys for Plaintiff  
16 Court Street, Suite 1717  
Brooklyn, New York 11241  
718-522-1020

TO:  
Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201

**AFFIDAVIT OF SERVICE**

STATE OF NEW YORK, COUNTY OF KINGS ss:

Alexandra Belenkaya being duly sworn, deposes and says:

I am over 18 years of age, I am not a party to the action, and I reside in County of Queens in the State of New York.

I served a true copy of the Annexed

**NOTICE FOR DISCOVERY AND INSPECTION**

On December 19, 2018

By mailing the same in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service within the State of New York, addressed to the last known address of the addressee as indicated below:

Zachary W. Carter, Esq.  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201

  
\_\_\_\_\_  
Alexandra Belenkaya

Sworn to before me December 19, 2018,

\_\_\_\_\_  
NOTARY PUBLIC

SUZANNE VALENTINE  
COMMISSIONER OF DEEDS  
No. 4-10061  
Certificate Filed in Kings County  
Commission Expires June 1, 2022

**AFFIDAVIT OF SERVICE**

STATE OF NEW YORK, COUNTY OF KINGS ss:

Alexandra Belenkaya being duly sworn, deposes and says:

I am over 18 years of age, I am not a party to the action, and I reside in County of Queens in the State of New York.

I served a true copy of the Annexed

**NOTICE OF MOTION, AFFIRMATION IN SUPPORT, AFFIRMATION OF GOOD FAITH & EXHIBITS**

On April 2, 2019

By mailing the same in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service within the State of New York, addressed to the last known address of the addressee as indicated below:

Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, New York 11201

  
\_\_\_\_\_  
Alexandra Belenkaya

Sworn to before me April 2, 2019

  
\_\_\_\_\_  
NOTARY PUBLIC

JACK JACILLA  
NOTARY PUBLIC, State of New York  
No. 01JA4750607  
Qualified in Kings County  
Commission Expires Nov. 30, 2021

NO. 1

RECEIVED NYSC

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

**NOTICE OF MOTION**

- against -

Index No.: 2341/2015

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN DOES-Police Officers as yet unidentified,

City File #: 2015-008455

Defendants.  
-----X**MOTION BY:**

Rubenstein &amp; Rynecki, Esqs., attorneys for the plaintiff

**DATE, TIME & PLACE  
OF HEARING:**October 15, 2019, 9:30 am at the Supreme Court, Kings  
County, 360 Adams Street, Brooklyn, NY, Central  
Compliance Part.**RELIEF REQUESTED:**An Order striking the Answer of the defendants for repeated  
failure to provide the Internal Affairs Bureau file or in the  
alternative, compelling defendants to provide the aforesaid  
discovery; Extending plaintiff's time to file a Note of Issue on  
a date certain and for such other and further relief as the Court  
deems just and proper.**SUPPORTING PAPERS:**Affirmations of Marc R. Battipaglia, Esq., dated September  
18, 2019 with exhibits annexed thereto.**ANSWERING AFFIDAVITS:**To be served seven (7) days prior to the return date of this  
motion.Dated: Brooklyn, New York  
September 18, 2019

Yours, etc.

  
**MARC R. BATTIPAGLIA, ESQ.**  
**RUBENSTEIN & RYNECKI, ESQS.**  
Attorneys for the Plaintiff  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718)522-1020TO:  
Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201**KINGS COUNTY  
SUPREME COURT  
MOTION SUPPORT  
APPROVED**  
DATE: \_\_\_\_\_KINGS COUNTY CLERK  
FILED  
2019 SEP 19 PM 03

7

At an I.A.S. Trial Term, Part A of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 16 day of October 2019

P R E S E N T :

Hon. Colon

Justice

Michael Gray

Plaintiff(s)

Cal. No. 9

Index No. 2341/2015

- against -

The City of New York et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

It's motion to strike is resolved as follows

1) City to provide Subject IAB records within 30 days

2) Note of issue due 11/10/2020.

For Clerks use only

MG

MD

Motion Seq. # 4

EJV-rev 11-04

ENTER

J.S.C.

Hon. Lizette Colon

J.S.C.

KINGS COUNTY CLERK  
FILED  
2019 OCT 17 AM 9:11

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

MICHAEL GRAY,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN DOES-Police Officers as yet unidentified,

Defendants.

NOTICE OF MOTION

Index No.: 2341/2015

City File #: 2015-008455

**MOTION BY:**

Rubenstein &amp; Rynecki, Esqs., attorneys for the plaintiff

**DATE, TIME & PLACE  
OF HEARING:**October 15, 2019, 9:30 am at the Supreme Court, Kings  
County, 360 Adams Street, Brooklyn, NY, Central  
Compliance Part**RELIEF REQUESTED:**An Order striking the Answer of the defendants for repeated  
failure to provide the Internal Affairs Bureau file or in the  
alternative, compelling defendants to provide the aforesaid  
discovery; Extending plaintiff's time to file a Note of Issue on  
a date certain and for such other and further relief as the Court  
deems just and proper.**SUPPORTING PAPERS:**Affirmations of Marc R. Battipaglia, Esq., dated September  
18, 2019 with exhibits annexed thereto.**ANSWERING AFFIDAVITS:**To be served seven (7) days prior to the return date of this  
motion.Dated: Brooklyn, New York  
September 18, 2019

Yours, etc.,

MARC R. BATTIPAGLIA, ESQ.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorneys for the Plaintiff  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718)522-1020TO:  
Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201KINGS COUNTY  
SUPREME COURT  
MOTION SUPPORT  
FILED  
9/18/19

2019 OCT 17 AM 9:11

KINGS COUNTY CLERK  
FILED  
M. R. Carter  
D. CarterKINGS COUNTY CLERK  
FEE PD \$ 45.00

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MICHAEL GRAY,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN DOES-Police Officers as yet unidentified,

Defendants.  
-----X

**AFFIRMATION IN  
SUPPORT**

Index No.: 2341/2015

City File #: 2015-008455

**MARC R. BATTIPAGLIA ESQ.**, an attorney duly admitted to practice law before the  
Courts of the State of New York, affirms the following under the penalty of perjury:

1. I am an associate with the law firm of Rubenstein & Rynecki, Esqs., attorneys for the plaintiff herein, and as such, am fully familiar with the facts and circumstances of the within action, based upon the file maintained in my office.
2. This Affirmation is submitted in support of the within Motion seeking an Order striking the Answer of the defendants for repeated failure to provide the Internal Affairs Bureau file or in the alternative, compelling defendants to provide the aforesaid discovery; Extending plaintiff's time to file a Note of Issue on a date certain and for such other and further relief as the Court deems just and proper.
3. The underlying action is an action for serious personal injuries sustained by the plaintiff as a result of an assault by police officers that occurred on April 17, 2014.
4. The action was commenced with the service of a Summons and Verified Complaint. Thereafter, issue was joined with the service of defendants' Verified Answers. Annexed hereto as **Exhibit 1** are copies of said pleadings.
5. On October 30, 2017, defendant produced Police Officer Cameel Quallis for a deposition. As a result of that deposition, on October 30, 2017, plaintiff's counsel served a Post EBT Demand upon said defendants requesting numerous discovery items, including a copy of the Internal Affairs Bureau records for all Police Officers involved in subject accident Defendant

failed to provide the requested discovery. Annexed hereto as **Exhibit 2** is a copy of the plaintiff's October 30, 2017 Post EBT Demands.

6. Then the parties appeared for a Compliance Conference on March 27, 2018 and an Order was entered into. Said order directed defendants to search for and provide the Internal Affairs Bureau file within 45 days. Defendant failed to comply with the Court Order. Annexed hereto as **Exhibit 3** is a copy of the Compliance Conference Order dated March 27, 2018.

7. Then the parties appeared for a Compliance Conference on December 18, 2018 and an Order was entered into. Said order directed defendants to provide the Internal Affairs Bureau file within 45 days. Defendant again failed to comply with the Court Order. Annexed hereto as **Exhibit 4** is a copy of the Compliance Conference Order dated December 18, 2018.

8. Then on April 2, 2019, your affiant's office filed a Motion seeking the same relief as requested herein. On May 15, 2019, all parties appeared and an Order was entered into. Said order directed defendant The City of New York to provide the Internal Affairs Bureau file within 45 days. Defendant The City of New York failed to comply with the court order. Annexed hereto as **Exhibit 5** is a copy of the May 15, 2019 court order.

9. Then in order to avoid unnecessary Motion practice, your Affirmant's office notified defendants of their lack of response with a good faith letter dated July 17, 2019, requesting the defendants respond to the May 15, 2019 Court Order. A copy of the aforesaid letter is annexed hereto as **Exhibit 6**.

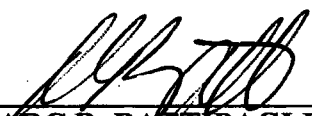
10. CPLR §3124 provides in part, that if a person fails to respond to or comply with any request notice, interrogatory demand, question or Order under this Article, the party seeking disclosure may move to compel compliance or a response. When a party fails to respond, the proponent of the request may move for an Order pursuant to CPLR §3124 compelling disclosure and/or response. Harowitz v. Camp Cedar Hurst And Town And Country Day School 119 A.D.2d 548.

11. As such, it is respectfully requested that this Court issue an Order striking the Answer of the defendants for repeated failure to provide the Internal Affairs Bureau file or in the alternative,

compelling defendants to provide the aforesaid discovery; Extending plaintiff's time to file a Note of Issue on a date certain and for such other and further relief as the Court deems just and proper.

**WHEREFORE**, it is respectfully requested that the instant motion be granted in its entirety, and for such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York  
September 18, 2019

  
\_\_\_\_\_  
MARC R. BATTIPAGLIA, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN DOES-Police Officers as yet unidentified,Defendants.  
-----XAFFIRMATION OF  
GOOD FAITH

Index No.: 2341/2015

City File #: 2015-008455

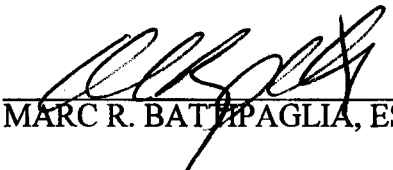
MARC R. BATTIPAGLIA, ESQ., an attorney admitted to practice before the Courts of this State affirms the truth of the following under the penalty of perjury and pursuant to the provisions of the CPLR.

I am an associate with the law firm of RUBENSTEIN & RYNECKI, ESQS. attorneys for the plaintiff herein and I submit this Affirmation in good faith in order to enlist judicial intervention of the Court in the above striking the Answer of the defendants for repeated failure to provide the Internal Affairs Bureau file or in the alternative, compelling defendants to provide the aforesaid discovery; Extending plaintiff's time to file a Note of Issue on a date certain and for such other and further relief as the Court deems just and proper.

This discovery is necessary to bring forth all the facts and are in the interest of justice. The actions of the defendants has severely and irrevocably prejudiced the plaintiff. The within issues could not be resolved amicably, despite the March 27, 2018, December 18, 2018 and May 15, 2019 court orders and the July 17, 2019 good faith letter, and requires the Court's intervention.

**WHEREFORE**, I respectfully pray that the within Affirmation of Good Faith be accepted.

Dated: Brooklyn, New York  
September 18, 2019

  
\_\_\_\_\_  
MARC R. BATTIPAGLIA, ESQ.



SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as  
yet unidentified,Defendants.  
-----XIndex # 2341/15  
Date of filing: 2/24/15Plaintiff designates Kings  
County as the place of trialBasis of the venue is the Locup  
of Occurrence

## SUMMONS

Plaintiff resides at  
193 Clinton Ave Apt. # 10D  
Brooklyn, New York 11205

County of Kings

## TO THE ABOVE NAMED DEFENDANT:

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

## Defendant's address:

THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007THE NEW YORK CITY POLICE  
DEPARTMENT  
100 Church Street  
New York, New York 10007POLICE OFFICER MICHAEL LANDI  
Tax ID# 950718  
c/o New York City Police Department- 88<sup>th</sup>  
Precinct  
298 Classon Avenue  
Brooklyn, New York 11205

## Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.  
16 Court Street, Suite 1717  
Brooklyn, New York 11241  
(718)522-1020Dated: Brooklyn, New York  
January 30, 2015KINGS COUNTY CLERK  
RECEIVED  
2015 FEB 24 PM 3:35

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as  
yet unidentified,Defendants.  
-----X

Index No.: 2341/15

COMPLAINT

Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT  
AND BATTERY ON BEHALF OF MICHAEL GRAY**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on May 28, 2014, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H hearing of the plaintiff has not held. A date for said hearing is in the process of being scheduled.

6. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHAEL GRAY, was lawfully present at or about the intersection of Myrtle Avenue and Emerson Place, County of Kings, City and State of New York.

8. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHAEL GRAY, was assaulted and battered by defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, at the aforesaid premises.

9. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, MICHAEL GRAY, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

11. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and

was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT  
HIRING AND RETENTION ON BEHALF OF MICHAEL GRAY**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, MICHAEL GRAY.

16. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE  
ARREST ON BEHALF OF MICHAEL GRAY**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, MICHAEL GRAY.

20. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, MICHAEL GRAY, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE  
IMPRISONMENT ON BEHALF OF MICHAEL GRAY**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND

JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL  
AND NEGLIGENT INFLICTION OF EMOTIONAL  
DISTRESS ON BEHALF OF MICHAEL GRAY**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, MICHAEL GRAY.

30. That as a result of said intentional and negligent acts, the plaintiff, MICHAEL GRAY, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS  
PROSECUTION ON BEHALF OF MICHAEL GRAY**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

34. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

35. That on April 17, 2014, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

36. By reason of the foregoing, plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL  
RIGHTS VIOLATION ON BEHALF OF MICHAEL GRAY**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the plaintiff, MICHAEL GRAY, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

39. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, MICHAEL GRAY, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

40. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

41. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

42. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

43. That the defendants' actions were not privileged or immune.

44. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY

POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

45. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR  
PUNITIVE DAMAGES ON BEHALF OF MICHAEL GRAY**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

48. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

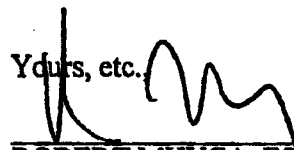
49. By the reason of the foregoing, the plaintiff, MICHAEL GRAY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**WHEREFORE**, plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action;

plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Seventh Cause of Action; plaintiff, MICHAEL GRAY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Eighth Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York  
January 30, 2015

Yours, etc.

  
ROBERT MIJUCA, ESQ.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorneys for Plaintiff  
MICHAEL GRAY  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718) 522-1020  
File No.: 14MG04-17

INDIVIDUAL VERIFICATION

STATE OF NEW YORK )

) SS:

COUNTY OF KINGS )

MICHAEL GRAY, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

  
MICHAEL GRAY

Sworn to before me this 19<sup>th</sup>  
day of February, 2015



NOTARY PUBLIC

Christopher Viscuso  
Commissioner of Deeds, City of New York  
CDS number: 4-7212  
New York County  
Expires: April 1, 2016

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

MICHAEL GRAY,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI AND JOHN AND JANE DOES-POLICE  
OFFICERS AS YET UNIDENTIFIED,

Defendant(s).

ANSWER

Index #: 2341/2015

Law Dept. #: 2015-008455

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A  
THE NEW YORK CITY POLICE DEPARTMENT, by ZACHARY W. CARTER, Corporation  
Counsel, answering the complaint, allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 8-13, 15-17, 19-22, 24-26, 28-31, 33-36, 38-45, 47-49, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to the truth of the allegations set forth in paragraph(s) 1, 6, 7, inclusive.
3. Deny the allegations set forth in paragraph(s) 4, 5, inclusive, except that a notice of a claim was presented, that more than thirty days have elapsed without adjustment thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, inclusive, except that the City of New York is a municipal corporation which maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 14, 18, 23, 27, 32, 37, 46, inclusive, except as otherwise pleaded herein.

**AFFIRMATIVE DEFENSE(S)**

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

10. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. Such statements as were made concerning the plaintiff(s) were privileged as being true, or fair comment upon matters of opinion, and were made in the good faith belief in their truth without malice to person(s) having a like duty or interest therein.

12. Plaintiff(s) did not submit to an examination pursuant to Section 50-h, General Municipal Law, before commencement of this action.

13. Plaintiff(s)' complaint fails to allege a prima facie case against the defendant answering hereby.

**WHEREFORE**, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

**ZACHARY W. CARTER**  
Corporation Counsel  
100 Church Street  
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----x  
MICHAEL GRAY,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI AND JOHN AND JANE DOES-POLICE  
OFFICERS AS YET UNIDENTIFIED,

Defendant(s).  
-----x

**AMENDED ANSWER**

Index #: 2341/2015

Law Dept. #: 2015-008455

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A  
THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MICHAEL LANDI ,  
by ZACHARY W. CARTER, Corporation Counsel, answering the complaint, allege upon  
information and belief:

1. Deny each allegation set forth in paragraph(s) 8-13, 15-17, 19-22, 24-26,  
28-31, 33-36, 38-45, 47-49, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to  
the truth of the allegations set forth in paragraph(s) 1, 7, inclusive.
3. Deny the allegations set forth in paragraph(s) 4, 5, inclusive, except that a  
notice of a claim was presented, that more than thirty days have elapsed without adjustment  
thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, 6, inclusive, except  
that the City of New York is a municipal corporation which employed P. O. MICHAEL LANDI  
and maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 14, 18, 23, 27, 32, 37, 46, inclusive, except as otherwise pleaded herein.

**AFFIRMATIVE DEFENSE(S)**

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

10. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. Such statements as were made concerning the plaintiff(s) were privileged as being true, or fair comment upon matters of opinion, and were made in the good faith belief in their truth without malice to person(s) having a like duty or interest therein.

12. This court lacks jurisdiction over the defendant(s) P. O. MICHAEL LANDI, in that said defendant(s) were not personally served with the summons.

13. Plaintiff(s) did not submit to an examination pursuant to Section 50-h, General Municipal Law, before commencement of this action.

14. Plaintiff(s)' complaint fails to allege a prima facie case against the defendant answering hereby.

**WHEREFORE**, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

**ZACHARY W. CARTER**  
Corporation Counsel  
100 Church Street  
New York, New York 10007



SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN DOES-Police Officers as yet  
unidentified,Defendants.  
-----X**POST EBT DEMANDS**

Index No.: 2341/2015

City File #: 2015-008455

**PLEASE TAKE NOTICE**, that pursuant to CPLR 3120, Defendant is hereby required to produce, furnish and permit discovery and inspection by the Plaintiff and his Attorneys RUBENSTEIN & RYNECKI, the following items, documents and/or information on December 4, 2017, at 2:00 o'clock in the afternoon, returnable at the office of the undersigned.

1. Voucher for the pitchfork that was allegedly recovered from the plaintiff.
2. Roll call for the 88<sup>th</sup> Precinct for the date of subject incident.
3. Full names of all Police Officers who were part of the Anti-Crime Unit of the 88<sup>th</sup> Precinct on the date of subject incident.
4. Copies of the Civilian Complaint Review Board and Internal Affairs Bureau records for all Police Officers involved in the subject accident.

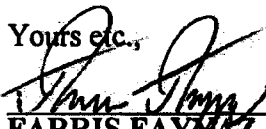
The aforesaid discovery may be complied with, by sending true copies of the above mentioned documents to the undersigned prior to the time herein above set forth for the production thereof.

**PLEASE TAKE FURTHER NOTICE**, that the foregoing are continuing demands and that if any of the above items are obtained after the date of this demand, they are to be furnished to the undersigned pursuant to these demands.

**PLEASE TAKE FURTHER NOTICE**, that in the event of your failure to comply, motion will be made for an Order to Strike your Answer, with costs.

Dated: October 30, 2017  
Brooklyn, New York

Yours etc.,

  
FARRIS FAYYAZ, ESQ.  
RUBENSTEIN & RYNECKI

**Attorneys for Plaintiff  
16 Court Street, Suite 1717  
Brooklyn, New York 11201  
(718) 522-1020**

**TO:  
Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201**

**AFFIDAVIT OF SERVICE**

STATE OF NEW YORK, COUNTY OF KINGS ss.:

**Christopher Vitoratos** being duly sworn, deposes and says:

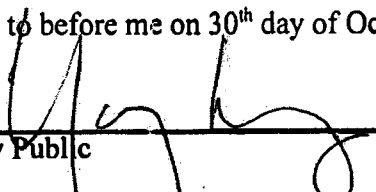
I am over 18 years of age, I am not a party to the action, and I reside in Queens County in the State of New York.

On October 30, 2017 I served a true copy of the annexed **POST EBT DEMANDS** by **REGULAR MAIL** the same in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service within the State of New York, addressed to the last known address of the addressee as indicated below:

Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201

  
\_\_\_\_\_  
**Christopher Vitoratos**

Sworn to before me on 30<sup>th</sup> day of October, 2017

  
\_\_\_\_\_  
Notary Public

**YANG FUNG LEONG**  
Notary Public, State of New York  
No. 01LE6136366  
Qualified in Kings County  
Commission Expires November 7, 2017



AB 2015-008455

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 27 day of March 2018

P R E S E N T :

Hon. Boddie M. SCHAEFER  
Justice

Michael Gray

Plaintiff(s)

Cal. No. 27

Index No.

2341/2015

- against -

The City of New York et al.

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

① EBT of Sgt. Felstein ~~reporting~~ to be held on 7/10/18 at 10AM at 350 Jay St, 8<sup>th</sup> Fl., Brooklyn, NY 11201.

② TT's Post-EBT demands dated 10/30/17 ~~are~~ are resolved as follows:

For Clerks use only

MG

MD

Motion Seq. #

~~by the City of New York~~ City to search for and provide, if found, within 45 days:  
a) voucher for pitchfork that was allegedly recovered from TT ENTER upon subject arrest

EJV-rev 11-04

b) roll call for 83<sup>rd</sup> Precinct on date of subject incident HON. MARTIN SCHNEIER, JHO

c) CCRB and IAB for subject incident.

③ Further CC on 12/18/18.

④ NOI extended to 2/22/19



MG 15-008455

At an I.A.S. Trial Term, Part <sup>T</sup> of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 18 day of December 2018

P R E S E N T :

Hon. MARTIN SCHNEIER

Justice

Michael Gray

Plaintiff(s)

Cal. No. 23

Index No. 2341/15

- against -

The City of New York

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

- 1) City to provide subject IAB within 45 days as per the 3/27/18 court order. City provided CCRB as per 3/27/18 court order.

2) NO1: 4/5/19

For Clerks use only

MG

MD

Motion Seq. #

3) CC:                     

E N T E R

4) It reserves it to serve further discovery demands

EJV-rev 11-04

J.S.C.

HON. MARTIN SCHNEIER, JHO

Likenstein-Lynock  
by K. Vint



2015-008415

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 15 day of May 2019

P R E S E N T :

Hon. Schneier

Justice

Michael Gray

Plaintiff(s)

Cal. No. 9Index No. 2341/15

- against -

The City of New York, The New York City Police Dept., Police Officer Michael Lundy et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Plaintiff's motion to compel is resolved as follows:

① As City is still awaiting IAB records response, City to provide subject IAB within 45 days.

② NOI extended to 9/27/19.

For Clerks use only

MG

MD

Motion Seq. # 3Further action: [Signature]

ENTER

J.S.C.

HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04

AC

Rubenstein  
by C. W. [Signature]



**RUBENSTEIN & RYNECKI**

ATTORNEYS AT LAW  
16 COURT STREET, SUITE 1717  
BROOKLYN, NEW YORK 11241  
Tel. (718)522-1020  
Fax. (718)522-3804

SANFORD A. RUBENSTEIN  
SCOTT E. RYNECKI\*  
ROBERT MIJUCA

HARPER SMITH  
MARC R. BATTIPAGLIA\*  
CHAD RUSSELL  
HARRIS MARKS\*  
ADAM WOLK  
YULIYA GONIKMAN

\* ADMITTED IN NY & NJ

July 17, 2019

Zachary W. Carter  
Corporation Counsel  
350 Jay Street  
Brooklyn, NY 11201

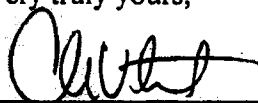
Re: Michael Gray  
D/A: April 17, 2014

Dear Counselor:

Please be advised that we have not yet received your response to the Court Order dated May 15, 2019. Annexed hereto is a courtesy copy of said order.

Please consider this letter a good faith attempt to obtain a response to this order within 20 days before unnecessary motion practice.

Very truly yours,



**Christopher Vitoratos**  
Paralegal

2015-0084

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 15 day of May 2014

P R E S E N T

Hon. Schneier

Justice

Michael Gray

Plaintiff(s)

Cal. No. 9Index No. 2341/15

- against -

The City of New York, The New York City Police Dept., Police Officer Michael Lundy et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Plaintiff's motion to compel is described as follows:

- ① As City is still awaiting IAB records regarding City to provide subject IAB within 45 days.
- ② NOI extended to 9/27/19.

For Clerks use only

MG         MD         Motion Seq. # 3

EJV-rev 11-04

E N T E R

HON. MARTIN SCHNEIER, JHO

**AFFIDAVIT OF SERVICE**

STATE OF NEW YORK, COUNTY OF KINGS ss.:

**Christopher Vitoratos** being duly sworn, deposes and says:

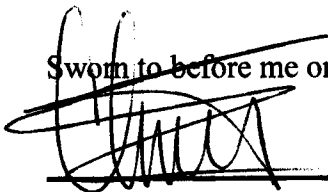
I am over 18 years of age, I am not a party to the action, and I reside in Queens County in the State of New York.

On September 18, 2019 I served a true copy of the annexed **NOTICE OF MOTION** by **REGULAR MAIL** the same in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service within the State of New York, addressed to the last known address of the addressee as indicated below:

Zachary W. Carter  
Corporation Counsel  
Attorneys for Defendants  
350 Jay Street  
Brooklyn, NY 11201

  
\_\_\_\_\_  
**Christopher Vitoratos**

Sworn to before me on 18<sup>th</sup> day of September, 2019

  
\_\_\_\_\_  
Notary Public

CATINA D. IMES  
Notary Public, State of New York  
No. 011M6158612  
Qualified in Queens County  
Commission Expires Jan 12/23

PLEASE take notice that the within is a (certified)  
true copy of a  
duly entered in the office of the clerk of the within  
named court on

Dated,

Yours, etc.

**RUBENSTEIN & RYNECKI ESQS.**

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

To

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented  
for settlement to the Hon.

one of the judges of the within named Court, at

on

at

M.

Dated,

Yours, etc.

**RUBENSTEIN & RYNECKI ESQS.**

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

To

Attorney(s) for

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

**MICHAEL GRAY,  
Plaintiff,**

**-against-**

**THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT  
POLICE OFFICER MICHAEL LANDI and JOHN DOES-Police Officers as yet  
unidentified,**

**Defendants.**

**NOTICE OF MOTION**

Signature (Rule 130-1.1-a)

Print name beneath

**RUBENSTEIN & RYNECKI ESQS.**

Attorneys for

Office and Post Office Address, Telephone

16 COURT ST.

BROOKLYN, N.Y. 11241

(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for

NYSCEF DOC. NO. 1

Index No.: 2341/2015

SUPREME COURT OF THE STATE OF NEW YORK

KINGS COUNTY

MICHAEL GRAY,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified,

Defendant.

## NOTE OF ISSUE

JUSTICE COLON

Name of Judge Assigned

RECEIVED NYSCEF

07/30/2020

JURY

JAN 10 2020

## NOTICE FOR TRIAL

☒ Trial by jury demanded☒ Of all issues☐ Of issues specified below or attached hereto☐ Trial without jury

Filed by attorney for plaintiff

Date summons served 3/2/15, 3/12/15

Date service completed 3/2/15, 3/12/15

Date issue joined 3/24/15, 6/15/15

## NATURE OF ACTION OR SPECIAL PROCEEDING

☒ Tort:☐ Motor vehicle negligence☐ Medical malpractice☐ Other tort☐ Contract☐ Contested matrimonial☐ Uncontested matrimonial☐ Tax certiorari☐ Condemnation☒ Other (not itemized above) specify ASSAULT & BATTERY☐ This action is brought as a class action☐ This is a medical malpractice action: panel procedures prescribed by court rules pursuant to Jud. § 148-a.☐ have been completed☐ have not been completed

Amount demanded—Actions 1 through 8 in an amount exceeding the jurisdictional limits of all lower courts

Other relief \_\_\_\_\_

Special preference claimed under Special Rules Appellate Division, Second Department on the ground that the injuries sustained have resulted in permanent or protracted disability

Insurance carrier(s), if known: \_\_\_\_\_

RUBENSTEIN &amp; RYNECKI

Attorney(s) for Plaintiff(s)

16 Court Street Suite 1717

Brooklyn, New York 11201

(718) 522-1020

James E. Johnson, Esq.

Attorneys for Defendant(s)

350 Jay Street, 8th Floor

Brooklyn, NY 11201

(718) 724-5200

NOTE: Clerk will not accept this note of issue unless accompanied by a certificate of readiness, or, in a medical malpractice action, unless, where applicable, the certificate of readiness previously has been filed and the panel procedures prescribed by court rules pursuant to § 148-a of the Judiciary Law have been completed.

**CERTIFICATE OF READINESS FOR TRIAL**  
(Items 1-7 must be checked)

For Clerk's Use

RECEIVED NYSCEF: 07/30/2020

N.I. served on

Completed

Waived

Not required

1. All pleadings served
2. Bill of Particulars served
3. Physical examinations completed
4. Medical reports exchanged
5. Appraisal reports exchanged
6. Compliance with the Rules in matrimonial actions (22NYCRR 202.16)
7. Discovery proceedings now know to be necessary completed
8. There are no outstanding requests for discovery.

See affirmation of compliance

9. There has been a reasonable opportunity to complete the foregoing proceedings.
10. There has been compliance with any order issued pursuant to the Precalendar Rules (22 NYCRR 202.12).
11. If a medical malpractice action, there has been compliance with any order issued pursuant to 22 NYCRR 202.56.
12. The case is ready for trial.

Dated: January 8, 2020

  
**Robert Mijuca**  
**RUBENSTEIN & RYNECKI**  
**Attorney(s) for Plaintiff(s)**  
**16 Court Street**  
**Suite 1717**  
**Brooklyn, New York 11241**  
**(718) 522-1020**

State of New York, County of Kings ss.:

being duly sworn, deposes and says; that deponent is not a party to the action, is over 18 years of age and resides in the County of Kings, State of New York.

That on the \_\_\_\_\_ deponent served the within NOTE OF ISSUE and CERTIFICATE OF READINESS on \_\_\_\_\_ attorney(s) for \_\_\_\_\_ herein, at his office at \_\_\_\_\_ during his absence from said office (a) by then and there leaving a true copy of the same with \_\_\_\_\_ his clerk; partner; person having charge of said office. (b) and said office being closed, by depositing a true copy of same, enclosed in a sealed wrapper directed to said attorney(s), in the office letter drop or box.

Sworn to before me on \_\_\_\_\_

Notary Public \_\_\_\_\_

State of New York, County of Kings ss.:

Adine Alston

being duly sworn, deposes and says; that deponent is not a party to the action, is over 18 years of age and resides in the County of Kings, State of New York.

That on January 8, 2020 the deponent served the within NOTE OF ISSUE and CERTIFICATE OF READINESS on James E. Johnson attorney(s) for THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MICHAEL LANDI herein, at 350 Jay Street, 8th Floor, Brooklyn, New York 11201, the address designated by said attorney(s) for that purpose by depositing a true copy of same enclosed in a postpaid properly addressed wrapper, in a post office official depository under the exclusive care and custody of the United States Postal Service within New York State.

Adine Alston

Sworn to before me on 1-8-20

Notary Public \_\_\_\_\_

**SUZANNE VALENTINE**  
**COMMISSIONER OF DEEDS**  
 No. 4-10061  
 Certificate Filed in Kings County  
 Commission Expires June 1, 2022

Admission of Service

Due service of a NOTE OF ISSUE and CERTIFICATE OF READINESS, of which the within is a copy, admitted  
January 8, 2020

**Robert Mijuca**  
**Attorney(s) for Plaintiff**

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

- against -

AFFIRMATION  
OF COMPLIANCE

Index No.: 2341/2015

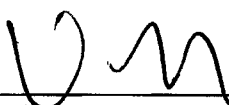
THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as yet  
unidentified,Defendant.  
-----X

ROBERT MIJUCA, ESQ., an attorney admitted to practice before the Courts of this State  
affirms the truth of the following under the penalty of perjury:

1. I am fully familiar with the facts and circumstances of this action based upon a  
review of the case file and the investigation materials contained therein.
2. This affirmation is submitted in connection with the filing of a Note of Issue.
3. Depositions of all parties have been conducted. The defendants did not  
designate a doctor of their choosing to conduct a physical examination of Plaintiff, therefore it is  
hereby waived.

**WHEREFORE**, Plaintiff respectfully requests that the instant matter be promptly placed  
on the trial calendar.

Dated: Brooklyn, New York  
January 8, 2020

  
\_\_\_\_\_  
ROBERT MIJUCA, ESQ.

RA

7

At an I.A.S. Trial Term, Part A of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 16 day of October 2019

P R E S E N T :

Hon.

Colon

Justice

Michael Gray

Plaintiff(s)

Cal. No. 9

Index No. 2341/2015

- against -

The City of New York et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

It's motion to strike is resolved as follows  
 1) City to provide Subject IAD Records within 30 days  
 2) Note of issue due 11/10/2020.

For Clerks use only

MG

MD

Motion Seq. # 4

EJV-rev 11-04

ENTER

J.S.C.

Hon. Lizette Colon  
J.S.C.

KINGS COUNTY CLERK  
 FILED  
 2019 OCT 17 AM 9:11

NYSCEF DOC. NO. 1

Index No.: 2341/2015

SUPREME COURT OF THE STATE OF NEW YORK

KINGS COUNTY

MICHAEL GRAY,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MICHAEL LANDI and JOHN AND JANE DOES-Police Officers as yet unidentified,

Defendant.

## NOTE OF ISSUE

JUSTICE COLON

Name of Judge Assigned

RECEIVED NYSCEF: 07/30/2020

JURY  
JAN 10 2020

## NOTICE FOR TRIAL

☒ Trial by jury demanded☒ Of all issues☐ Of issues specified below or attached hereto☐ Trial without jury

Filed by attorney for plaintiff

Date summons served 3/2/15, 3/12/15

Date service completed 3/2/15, 3/12/15

Date issue joined 3/24/15, 6/15/15

## NATURE OF ACTION OR SPECIAL PROCEEDING

☒ Tort:☐ Motor vehicle negligence☐ Medical malpractice☐ Other tort☐ Contract☐ Contested matrimonial☐ Uncontested matrimonial☐ Tax certiorari☐ Condemnation☒ Other (not itemized above) specify ASSAULT & BATTERY☐ This action is brought as a class action☐ This is a medical malpractice action: panel procedures prescribed by court rules pursuant to Jud. § 148-a.☐ have been completed☐ have not been completed

Amount demanded—Actions 1 through 8 in an amount exceeding the jurisdictional limits of all lower courts

Other relief \_\_\_\_\_

Special preference claimed under Special Rules Appellate Division, Second Department on the ground that the injuries sustained have resulted in permanent or protracted disability  
Insurance carrier(s), if known: \_\_\_\_\_

RUBENSTEIN &amp; RYNECKI

Attorney(s) for Plaintiff(s)

16 Court Street Suite 1717

Brooklyn, New York 11201

(718) 522-1020

James E. Johnson, Esq.

Attorneys for Defendant(s)

350 Jay Street, 8th Floor

Brooklyn, NY 11201

(718) 724-5200

NOTE: Clerk will not accept this note of issue unless accompanied by a certificate of readiness, or, in a medical malpractice action, unless, where applicable, the certificate of readiness previously has been filed and the panel procedures prescribed by court rules pursuant to § 148-a of the Judiciary Law have been completed.

**CERTIFICATE OF READINESS FOR TRIAL**  
(Items 1-7 must be checked)

For Clerk's Use

RECEIVED NYSCEF: 07/30/2020

N.I. served on

Completed

Waived

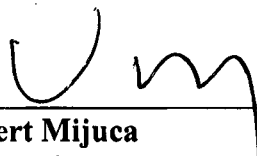
Not required

1. All pleadings served
2. Bill of Particulars served
3. Physical examinations completed
4. Medical reports exchanged
5. Appraisal reports exchanged
6. Compliance with the Rules in matrimonial actions (22NYCRR 202.16)
7. Discovery proceedings now know to be necessary completed
8. There are no outstanding requests for discovery.

See affirmation of compliance

9. There has been a reasonable opportunity to complete the foregoing proceedings.
10. There has been compliance with any order issued pursuant to the Precalendar Rules (22 NYCRR 202.12).
11. If a medical malpractice action, there has been compliance with any order issued pursuant to 22 NYCRR 202.56.
12. The case is ready for trial.

Dated: January 8, 2020

  
**Robert Mijuca**  
**RUBENSTEIN & RYNECKI**  
**Attorney(s) for Plaintiff(s)**  
**16 Court Street**  
**Suite 1717**  
**Brooklyn, New York 11241**  
**(718) 522-1020**

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Sworn to before me on \_\_\_\_\_

Notary Public \_\_\_\_\_

State of New York, County of Kings ss.:

Adine Alston

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Adine Alston

Sworn to before me on 1-8-20

Notary Public \_\_\_\_\_

**SUZANNE VALENTINE**  
**COMMISSIONER OF DEEDS**  
 No. 4-10061  
 Certificate Filed in Kings County  
 Commission Expires June 1, 2022

Admission of Service

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January 8, 2020

**Robert Mijuca**  
**Attorney(s) for Plaintiff**

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
MICHAEL GRAY,

Plaintiff,

- against -

AFFIRMATION  
OF COMPLIANCE

Index No.: 2341/2015

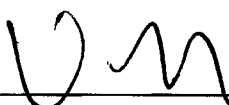
THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MICHAEL  
LANDI and JOHN AND JANE DOES-Police Officers as yet  
unidentified,Defendant.  
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2. This affirmation is submitted in connection with the filing of a Note of Issue.
3. Depositions of all parties have been conducted. The defendants did not  
designate a doctor of their choosing to conduct a physical examination of Plaintiff, therefore it is  
hereby waived.

**WHEREFORE**, Plaintiff respectfully requests that the instant matter be promptly placed  
on the trial calendar.

Dated: Brooklyn, New York  
January 8, 2020

  
\_\_\_\_\_  
ROBERT MIJUCA, ESQ.

RA

7

At an I.A.S. Trial Term, Part A of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 16 day of October 2019

P R E S E N T :

Hon.

Colon

Justice

Michael Gray

Plaintiff(s)

Cal. No. 9

Index No. 2341/2015

- against -

The City of New York et al

Defendant(s)

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and Affidavits (Affirmations) Annexed

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Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

It's motion to strike is resolved as follows  
 1) City to provide Subject IAD Records within 30 days  
 2) Note of issue due 11/10/2020.

For Clerks use only

MG

MD

Motion Seq. # 4

EJV-rev 11-04

ENTER

J.S.C.

Hon. Lizette Colon  
J.S.C.

KINGS COUNTY CLERK  
 FILED  
 2019 OCT 17 AM 9:11

**SUPREME COURT OF THE STATE OF NEW YORK**  
**COUNTY OF KINGS**

-----X  
**MICHAEL GRAY**

Plaintiff(s)/Petitioner(s),

Index No. 2341/2015

- against -

**THE CITY OF NEW YORK, et al**

**STIPULATION AND  
CONSENT TO E-FILE**

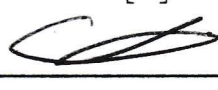
Defendant/Respondent(s).  
 -----X

We the undersigned, counsel in good standing representing parties in this matter, counsel admitted pro hac vice, and/or a self-represented party in this matter, hereby stipulate and consent to the use of the New York State Courts Electronic Filing System ("NYSCEF") in this matter. We agree to be bound by the rules governing the NYSCEF System (Section 202.5-b of the Uniform Rules for the Trial Courts) and the procedures of the NYSCEF system as reflected in the *User's Manual* approved by the Chief Administrator of the Courts and posted on the NYSCEF website.

Any of the undersigned who indicate below that they are not currently an authorized e-filing user in the NYSCEF System understand that they must first obtain a user ID and password before they may file any documents with NYSCEF and that they may do so by accessing the Create an Account button on the NYSCEF Login screen (<https://iapps.courts.state.ny.us/nyscef/Login>). They also understand that once they receive their credentials, their primary e-mail addresses, listed below, will be used for service of documents.

Dated: 6/26/20

Registered User: ☒ Yes ☐ No  
 Attorney ☒ Pro Hac ☐ Pro Se ☐

Signature

Stamatis Lathourakis

Print Name

City of NY and PO Michael Landi

Attorney for (Identity of Parties)

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E-Mail

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Registered User: ☒ Yes ☐ No  
 Attorney ☒ Pro Hac ☐ Pro Se ☐

  
 Robert Mijuca by Stamatis Lathourakis upon  
 written consent of Robert Mijuca

Signature

Robert Mijuca

Print Name

Michael Gray

Attorney for (Identity of Parties)

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(Optional)

3d E-Mail

3d E-Mail

(Optional)

(Optional)

Registered User: ☐ Yes ☐ No  
Attorney ☐ Pro Hac ☐ Pro Se ☐

Registered User: ☐ Yes ☐ No  
Attorney ☐ Pro Hac ☐ Pro Se ☐

Signature

Signature

Print Name

Print Name

Attorney for (Identity of Parties)

Attorney for (Identity of Parties)

UCS Attorney Registration #

UCS Attorney Registration #

Firm Name

Firm Name

Address

Address

Phone #

Phone #

E-Mail

E-Mail

(Primary)

(Primary)

2d E-Mail

2d E-Mail

(Optional)

(Optional)

3d E-Mail

3d E-Mail

(Optional)

(Optional)

6/5/13